



CHAPTER cxxxiii.

An Act to extend the boundaries of the city and royal burgh of Edinburgh and county of the city of Edinburgh to authorise the Lord Provost magistrates and council of the city to purchase and acquire lands at Saughton to erect and maintain a tramway power station at Fortobello to construct works and tramways to acquire lands to amend Acts and for other purposes. A.D. 1900.
[30th July 1900.]

WHEREAS the municipal and police administration of the city and royal burgh of Edinburgh and other matters connected therewith are vested in and managed by the lord provost magistrates and council thereof (hereinafter called "the Corporation") under among others the Edinburgh Municipal and Police Acts 1879 to 1899 :

And whereas by the Edinburgh Extension Act 1896 the boundaries of the said city and royal burgh and the county of the city were extended and defined as therein set forth :

And whereas it is expedient that such boundaries should be further extended so as to comprise and include therein in addition to the existing burgh certain other lands and districts lying contiguous and adjacent to the said city all as shown on the map hereinafter mentioned and as the same are in this Act described and that all franchises rights privileges and immunities of the said city and burgh and the royalty thereof and county of the city and the powers jurisdictions authorities and privileges of the lord provost and magistrates and of the magistrates and council and of the police and the burgh and the dean of guild courts thereof and all other jurisdictions whatsoever should be extended over and be applicable to and within the whole lands and territory forming the extended city and royal burgh and the inhabitants of the same and that the provisions of the Edinburgh Municipal and Police Acts and all other Acts public and local in force for the time within or applicable to the city and

A.D. 1900. — royal burgh of Edinburgh should as the same are amended by this Act be applied to the city and royal burgh and to the county of the city as so extended :

And whereas for the purposes of such extension it will be necessary that the said districts within the county of Midlothian added to the existing burgh by this Act should be separated for the purposes of this Act from the county of Midlothian and that all matters of administration and management and all jurisdictions powers and authorities within the districts annexed including the repairing maintenance and management of the roads and streets therein should devolve upon and be vested in the Corporation :

And whereas it is expedient that the districts added to the city under this Act should be and be deemed to be part of the county of the city of Edinburgh and should be within the jurisdiction of quarter sessions of the said county of the city of Edinburgh and of the commission of the peace thereof and that the powers of the existing and future lords lieutenant deputy lieutenants and justices of the peace and licensing courts and courts of quarter sessions and all other courts jurisdictions and functions of and within the county of Midlothian should cease within the districts annexed :

52 & 53 Vict.
c. cvi.

And whereas under the Water of Leith Purification and Sewerage Act 1889 an extensive system of works for the purification of the said river from its source in the county of Midlothian to the sea was carried out :

And whereas by the said last-mentioned Act a commission was incorporated as therein set forth which among others should consist of one person to be elected by each of the then landward local authorities from among their own number and two persons to be elected by the occupiers of mills and other works as provided in the said Act :

And whereas under the Water of Leith Purification and Sewerage (Additional Powers) Act 1893 further powers in relation to the said undertaking were conferred on the commissioners :

And whereas under and in consequence of the aforesaid Edinburgh Extension Act 1896 the said Purification Acts of 1889 and 1893 were further amended as therein mentioned :

And whereas the Corporation of Edinburgh are required to impose and levy an assessment within their jurisdiction for the purpose of meeting the sums of money payable by them under the said Purification Acts and the landward local authorities are also required as provided by the said Acts to impose and levy the sums which they are required to contribute :

And whereas in consequence of the extension of boundaries of the city under the provisions of this Act it is expedient that the

said Purification Acts should be further amended as hereinafter provided : A.D. 1900.

And whereas it is expedient that the Corporation should be authorised to make and maintain the works and tramways hereinafter mentioned and to acquire lands for the purposes thereof :

And whereas it is expedient that the Corporation should be further authorised to acquire certain lands and properties for the several other purposes hereinafter in this Act mentioned :

And whereas it is expedient that the Corporation should be authorised to borrow money for the construction of the works and tramways authorised by this Act and for the purchase of lands and for all or any of the other purposes of this Act and should be empowered to levy rates and assessments :

And whereas it is expedient that the further powers hereinafter mentioned should be conferred on the Corporation and that the provisions of the Edinburgh Municipal and Police Acts should be amended as in this Act provided :

And whereas plans and sections showing the lines and levels of the several works and tramways authorised by this Act and the lands proposed to be taken for the purposes thereof and plans of the lands to be acquired for the other purposes of this Act and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands or houses which may be taken under the powers of this Act were duly deposited with the principal sheriff clerk of the county of Midlothian and also with the principal sheriff clerk of the county of the city of Edinburgh and the same are hereinafter respectively referred to as the deposited plans sections and books of reference :

And whereas these objects cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited for all purposes as the Edinburgh Corporation Act 1900 and where the Edinburgh Municipal and Police Acts 1879 to 1899 are referred to in conjunction with this Act they may be cited as the Edinburgh Municipal and Police Acts 1879 to 1900. Short title.

PART I.—PRELIMINARY.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Extension of Boundaries.

Division of
Act into
Parts.

A.D. 1900.

Part III.—New Works.

Part IV.—Tramways.

Part V.—Acquisition of Lands.

Part VI.—Assessments Borrowing Powers and Finance.

Part VII.—Miscellaneous.

Commence-
ment of
Act.

3. This Act shall (except as otherwise provided) commence and have effect on and from the first day of November one thousand nine hundred which date is hereinafter referred to as “the commencement of this Act.”

Interpreta-
tion.

4. In this Act and for the purposes of this Act (unless there be something in the subject or context inconsistent with this Act or repugnant to such construction) the several words and expressions to which meanings are assigned by the Edinburgh Municipal and Police Acts shall subject to the provisions of this Act have the same respective meanings :

“The existing burgh” means the existing city and royal burgh of Edinburgh within the limits described and defined in the Edinburgh Extension Act 1896 ;

“The city and royal burgh” and “the city” respectively mean the city and royal burgh of Edinburgh as existing previous to the commencement of this Act and as further extended by this Act ;

“The districts annexed” mean and comprehend so much of the city and royal burgh as was beyond the boundaries of the existing burgh previous to the commencement of this Act ;

“The wards” mean the wards of the existing burgh ;

“The Corporation” means the lord provost magistrates and council of the city and royal burgh ;

“The Edinburgh Municipal and Police Acts” mean in addition to the definition contained in the Edinburgh Extension Act 1896 the Edinburgh Municipal and Police Acts 1879 to 1899 and this Act and any other Act passed or to be passed in the present session of Parliament and shall also mean and include any other Municipal and Police Act and Provisional Order applicable to and in force within the city ;

“The Act of 1879” means the Edinburgh Municipal and Police Act 1879 ;

“The Act of 1891” means the Edinburgh Municipal and Police (Amendment) Act 1891 ;

“The Act of 1893” means the Edinburgh Improvement and Municipal and Police (Amendment) Act 1893 ;

“The Corporation Tramways Act 1893” means the Edinburgh Corporation Tramways Act 1893 ;

“The North Bridge Act 1894” or “the Act of 1894” means the A.D. 1900.
Edinburgh North Bridge Improvement Act 1894;

“The Extension Act” means the Edinburgh Extension Act 1896;

“The Corporation Tramways Act 1896” or “the Act of 1896”
means the Edinburgh Improvement and Tramways Act 1896;

“The Stock Act” means the Edinburgh Corporation Stock Act
1894 as amended by the Corporation Tramways Act 1896;

“The Act of 1897” means the Edinburgh Corporation Act 1897;

“The Act of 1899” means the Edinburgh Corporation Act 1899;

“The Water Acts” mean the Acts of and relating to the under-
taking of the Edinburgh and District Water Trustees;

“The Gas Acts” mean the Acts of and relating to the under-
taking of the Edinburgh and Leith Corporations Gas
Commissioners;

“The Purification Acts” mean the Water of Leith Purification
and Sewerage Act 1889 and the Water of Leith Purification
and Sewerage (Additional Powers) Act 1893 as amended by
the Edinburgh Extension Act 1896.

5. Section 3 (Interpretation of terms) section 19 (Local authority Certain pro-
visions of
Tramways
Act 1870
incorpo-
rated.
may lease or take tolls) and Part II. (Construction of tramways)
and Part III. (General provisions) of the Tramways Act 1870 are
incorporated with this Act except where the same are inconsistent
with or are varied by the Corporation Tramways Act 1893 the
Corporation Tramways Act 1896 the Act of 1897 the Act of 1899
or this Act:

Provided that the provisions of section 7 of the Telegraph Act
1878 shall apply (instead of the provisions of section 30 of the
Tramways Act 1870) to any alteration of or interference with any
telegraphic line belonging to or used by the Postmaster-General
The expression “telegraphic line” in this Act has the same meaning
as in the Telegraph Act 1878.

6. The Lands Clauses Acts are incorporated with and shall form Incorporation of Acts.
part of this Act.

PART II.—EXTENSION OF BOUNDARIES.

7. The municipal and police boundaries of the city and royal Extension of
boundaries.
burgh of Edinburgh shall be and are hereby extended to and shall
include and comprehend the whole territory and lands and heritages
within the existing burgh and also the following districts and areas
and lands and heritages beyond the existing burgh (that is to say):—

- (1) The whole lands and heritages situate within the parish
of Leith all in the county of Midlothian bounded by a line
commencing at the existing municipal boundary at the junction

A.D. 1900. of Willowbrae Road with Portobello Road (the said last-mentioned road being within the existing burgh) and extending in a south-easterly direction along the said municipal boundary and along Willowbrae Road to the boundary of the parish of Leith thence in a north-easterly south-easterly easterly south-easterly and easterly direction along said parish boundary to the existing municipal boundary of the Portobello district of Edinburgh thence in a northerly direction along said municipal boundary and across the said Portobello Road following the said municipal boundary to the western side of King's Road thence in a north-easterly direction along said municipal boundary and in continuation in a straight line along said boundary to low-water mark thence in a north-westerly direction along the seaward boundary of the said parish of Leith to the municipal boundary of the burgh of Leith thence in a south-westerly direction along the said last-mentioned boundary to the municipal boundary of the city of Edinburgh thence in a south-easterly and southerly direction to the point in London Road at or near the junction of said road with Meadowbank where said municipal boundary extends eastwards thence in an easterly direction to the point first mentioned :

(2) The whole lands and heritages situate within the parish of Duddingston all in the county of Midlothian bounded by a line commencing at a point on the boundary of the parish of Duddingston one hundred and thirty-six yards or thereby westwards measured along the course of Niddry Burn from the western boundary of the Portobello Combination Hospital and extending in a north-easterly direction by an irregular line along said parish boundary and along the course of the Niddry and Brunstane Burns to the junction of said last-mentioned burn with the Firth of Forth and as far seawards as said parish boundary extends thence in a south-westerly and westerly direction along the seaward boundary of said parish to the existing municipal boundary of the city of Edinburgh at Portobello thence in a south-easterly direction along said boundary to the south-east corner of the same thence in a westerly direction along the said municipal boundary to the south-west corner of the same thence in a north-westerly direction along the said municipal boundary for a distance of one hundred and eighteen yards or thereby thence in a westerly direction for a distance of two hundred and seventy-four yards or thereby to a point in a line in the prolongation northwards of the eastern fence of the field partly occupied by Duddingston Cottage two hundred and two yards or thereby north of

Duddingston Road thence in a south-easterly direction along the line above described to the southern side of the public road leading from Duddingston East Lodge to Duddingston Crescent thence in an easterly direction along the south side of said last-mentioned road for a distance of sixty-three yards or thereby thence in a south-easterly direction along the western fence of the field containing Portobello Combination Hospital to the point first mentioned:

(3) The whole lands and heritages situate in the parish of Cramond and county of Midlothian commencing by a line at the point of the junction of the boundary of the city of Edinburgh and the boundary of the burgh of Leith at or near the corner of Granton Road near the western end of Boswell Road Wardie twenty-two yards or thereby measuring in a southerly direction from the south corner of the entrance to Lufra Cottage Granton Road and sixty-three yards or thereby measuring in a north-westerly direction from the south corner of Granton Road and Boswell Road thence in a south-westerly direction along the existing municipal boundary of the city of Edinburgh and the course of the Wardie Burn as far as the south-western corner of Wardie north-westerly direction to the south-eastern corner of the road leading from Granton by Royston Mains and Granton Mains near the filter beds thence along the southern side of said road in a westerly and south-westerly direction as far as the entrance to Craig Royston grounds at the houses known as Pennywell thence in a northerly direction along the eastern boundary of the said Craig Royston grounds to the seaward boundary of the same thence in a straight line towards the eastern point of the rock known as Birnie Rock to low-water mark thence in an easterly direction along the seaward boundary of the parish of Cramond including Granton Harbour and Piers to the point where the Leith boundary joins low-water mark thence in a south-easterly direction along the said municipal boundary of Leith to the point first mentioned:

Provided always that the description of the said boundaries shall be subject to the rules of construction laid down in section 5 of the Representation of the People (Scotland) Act 1832.

A map of the city and royal burgh as extended and defined by this Act having been signed in triplicate by Colonel Robert Gunter the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred one copy thereof shall within one month after the passing of this Act be deposited in the Office of the Clerk of the Parliaments another copy thereof shall be deposited with the town clerk at his office and another copy thereof shall be deposited with the sheriff clerk of the county of Midlothian at his

A.D. 1900.

office and a copy of such map certified by the town clerk shall be deposited with the Board of Agriculture Provided that if there be any discrepancy between the said map and the description in this section the said map shall prevail.

Boundary of
county of
city.

8. The county of the city of Edinburgh shall be and be deemed to be and shall include the city and royal burgh as extended by this Act and all existing charters statutes enactments laws customs and usages with respect to the lieutenancy the deputy lieutenancy and the sheriffship and with respect to justices of the peace and general and quarter sessions of the peace and with respect to the licensing courts and with respect to the joint committee under the Publicans' Certificates (Scotland) Act 1876 and any Act amending the same and all jurisdictions prerogatives rights powers privileges and authorities whatsoever of the lord provost and of the magistrates all as the same are at the passing of this Act applicable within the county of the city of Edinburgh shall be applicable within the county of the city of Edinburgh as extended by this Act.

Districts dis-
joined from
county of
Midlothian.

9. The districts annexed shall be and the same are hereby for the purposes of this Act disjoined from the county of Midlothian.

Wards of
city.

10. The wards for all purposes (other than parliamentary elections) as re-arranged under the provisions of the Extension Act are the areas respectively described in the Second Schedule to this Act.

Addition to
wards.

11. For all purposes (other than parliamentary elections) the portions of the districts annexed shall be added to the wards as follows (that is to say):—

- (A) That portion of the lands and heritages in the parish of Leith first described in section 7 of this Act shall be added to and included in No. XVI. Portobello Ward:
- (B) That portion of the lands and heritages in the parish of Duddingston second described in section 7 of this Act shall also be added to and included in No. XVI. Portobello Ward:
- (C) That portion of the lands and heritages in the parish of Cramond third described in section 7 of this Act shall be added to and included in No. VIII. St. Bernard's Ward.

Provisions
as to valua-
tion roll.

12. The assessor for the city and royal burgh under the Valuation Acts shall at the same time as he makes up the valuation roll for the existing burgh for the year from Whitsunday one thousand nine hundred to Whitsunday one thousand nine hundred and one make up a valuation roll for the districts annexed and the assessor shall annually thereafter make up a valuation roll for the city and royal burgh and the procedure therefor and the right of appeal and forms shall be the same as nearly as may be as are provided by the

said Acts in relation to the existing burgh and for all municipal purposes and for all assessments such rolls shall be deemed to be the valuation rolls under the said Acts and all other Acts general or local. Provided that so long as it shall be necessary to include the lands and heritages within the districts annexed within the county of Midlothian for the purposes of the Acts in force for the time being relating to the registration of parliamentary voters such assessor shall give to the assessor of the said county access to and the use within the office of the assessor first named of all books and schedules necessary to enable him to make up his list of county voters within the districts annexed.

A.D. 1900.

13. The Corporation shall on the fifteenth day of May one thousand nine hundred and one and annually thereafter on the fifteenth day of May so long as any part of the districts annexed shall continue to be part of the county of Midlothian for the purposes of parliamentary elections pay to the county council of the said county such ~~proportion of the~~ expenses payable by them for the registration of parliamentary voters in the said districts as the number of such voters registered yearly in the said districts shall bear to the total number of parliamentary voters registered yearly in the county of Midlothian.

Expense of registration of voters.

14. The right of electing the town council of the city and royal burgh shall be in and belong to all such persons as have or shall have within the city and royal burgh the qualifications for voting at municipal elections specified and described in the Election Acts.

Qualification of municipal electors.

15. The assessor for the existing burgh under the Election Acts shall on or before the fifteenth day of September in the year one thousand nine hundred and in every subsequent year make out or cause to be made out a list of all persons in the districts annexed who shall be entitled to vote in the election of councillors for the city and royal burgh and the same procedure shall be applicable and be followed in reference to such list as is followed with reference to the register and lists of voters for municipal elections in the existing burgh. And on such lists being completed and lodged with the town clerk the town clerk shall sign the same and the last-mentioned lists and the register and lists of voters for the existing burgh shall together form the list or roll of persons entitled to vote at the next ensuing municipal election for the city and royal burgh. And the assessor for the city and royal burgh shall in order to enable him to make up the register of municipal voters for the city and royal burgh for the year from Whitsunday one thousand nine hundred to Whitsunday one thousand nine hundred and one be entitled to access to the books and schedules of the assessors for the county of Midlothian so far

Provision as to register of voters.

A.D. 1900. as relate to the districts annexed and those assessors shall give the assessor for the city and royal burgh all necessary and reasonable facilities for that purpose And the expenses of making up such registers and lists shall be paid out of the assessments to be levied by the Corporation under the powers of the Election Acts and this Act and all appeals and other proceedings before the sheriff referred to under those Acts shall be taken to and disposed of by the sheriff.

Rights of inhabitants in districts annexed.

16. Subject to the provisions of this Act the inhabitants of the districts annexed shall have possess and enjoy all the rights franchises privileges benefits immunities duties and advantages (except the parliamentary franchise) which are held possessed and enjoyed by the inhabitants of the existing burgh.

Transfer of property and liabilities of councils commissioners or authorities within the districts annexed.

17. Subject to the provisions of this Act all the property vested in held by or due or belonging to any councils commissioners or authorities within the districts annexed (other than parish councils and school boards) shall from and after the commencement of this Act be by virtue of this Act transferred to and vested in be held by and be due and belong to the Corporation as such property would if within or applicable to the existing burgh belong to or be comprised within the administration of the Corporation and shall form part of the property and assets of the city and royal burgh for all the estate and interest therein of such councils commissioners or authorities and shall be held received and enjoyed by the Corporation accordingly for behoof of the inhabitants of the city and royal burgh and the powers duties and liabilities of such councils commissioners or authorities shall with respect to the property so transferred be transferred and attach to the Corporation and shall form part of the powers duties rights debts liabilities and obligations of the city and royal burgh and be enjoyed exercised paid discharged and performed by the Corporation and the Corporation shall be bound to pay to such councils commissioners or authorities the value of all property which shall be transferred to and vested in the Corporation in terms of this section as such value may be fixed by agreement or failing agreement as the same may be fixed by arbitration.

Allocation of county debts.

18. The Corporation shall so soon as practicable after the passing of this Act pay to the county council the proportion of the county and suburban district debts applicable to the districts annexed as the same shall be fixed by agreement or failing agreement by arbitration.

Recovery of rates debts and penalties.

19. Every rate toll charge and assessment which shall have been imposed and levied by virtue of any Act in operation within

the existing burgh or within the districts annexed previous to the commencement of this Act and remaining unpaid together with all arrears and all debts and penalties incurred and due by any person under the same shall subject to the provisions of this Act be levied and recovered by the Corporation in accordance with the practice which at present obtains within the existing burgh under the Acts by virtue of which the same were imposed but all arrears of county council assessments due as at Whitsunday one thousand nine hundred and recovered by the Corporation shall be paid over by them to the county council.

20.—(1) Subject and without prejudice to any of the provisions of this Act the Corporation may on the one hand and any council or authorities within the districts annexed or any of them may on the other hand at any time after the passing of this Act make and carry into effect agreements with respect to the transfer of the property liabilities or powers from such councils or authorities or any of them to the Corporation and for settling and adjusting any claim or any doubt or difference arising in relation thereto and generally with respect to the execution of the provisions of this Act to which any such agreement may relate.

Power to Corporation and authorities to enter into agreements.

(2) In the event of any difference or dispute arising as to such agreements or as to any other matters or things in relation to the transference under this Act of the property liabilities or powers of the said councils or authorities within the districts annexed the same may at any time after the passing of this Act be referred to the decision of an arbiter to be named by the Secretary for Scotland on the application of any of the parties concerned and such arbiter may and shall determine the same and the parties by whom the expense of such arbitration shall be borne and his decision shall be final and not subject to review.

21. The provisions of the Edinburgh Municipal and Police Acts as amended and extended by any Act passed or to be passed in the present session of Parliament and by this Act and except in so far as inconsistent with or varied by this Act shall apply to the city and royal burgh in the same way and manner and as fully to all intents and purposes as they apply to the existing burgh and the provisions of all other local and personal Acts and all public general Acts already passed which relate to or apply or are in force or may be made applicable to the existing burgh and to the inhabitants thereof shall apply to the city and royal burgh and the inhabitants thereof as the said several Acts apply or may apply to the existing burgh in lieu and place of the provisions of any other Acts which may be in force or be applicable to the districts annexed or to any part of the same And the expressions "city" "city of Edinburgh"

Municipal and Police Acts to apply to extended city.

A.D. 1900. "city and royal burgh" "burgh" "royal burgh" "magistrates and council" "undertakers" "corporation" "commissioners" "local authority" or other words of similar import in any Act of Parliament whether local and personal or public general or in any Provisional Order confirmed by Parliament shall in so far as they apply to the existing burgh apply to the city and royal burgh and the limits within which the powers and provisions of those Acts affecting the existing burgh shall be put in force shall be the limits of the city and royal burgh. Provided that where in any of the foresaid Acts any distance beyond the burgh is prescribed which is measured at and from the boundary of the burgh such distance shall from and after the passing of this Act be reckoned from the boundary of the city as extended by this Act.

Provision
as to sub-
sisting
licences in
districts
annexed.

22. All certificates of licence before the commencement of this Act granted for the county of Midlothian by the justices of the peace for the county of Midlothian within the districts annexed and then in force shall unless the same shall be revoked or shall previously expire subsist and continue until the fifteenth day of May one thousand nine hundred and one and with reference to such certificates all prosecutions for offences against the Public Houses and Licensing Acts or any of them or for any breach of the regulations of such certificates shall be proceeded with in the same way as if such certificates had been originally granted within the city and royal burgh.

Transfer-
ring roads
and streets
to Corpora-
tion.

23. All public roads highways streets footpaths lanes and courts in the districts annexed where vested in the commissioners county council district committee or authorities within the districts annexed or any of them shall be and are hereby transferred to and vested in the Corporation and the same shall subject to the provisions of this Act be held maintained managed and administered by the Corporation under the provisions of the Edinburgh Municipal and Police Acts.

Confirming
agreement
between Cor-
poration and
county council.

24. The agreement made between the Corporation and the county council of Midlothian set forth in the Fourth Schedule is hereby confirmed and made binding on the said parties respectively.

For protec-
tion of
county
council
sewers.

25. The whole property and rights of the county council of the county of Midlothian in and over the existing sewers presently used or under construction for the drainage of the special drainage districts of Davidsons Mains and Liberton respectively within the county and passing through parts of the lands annexed to the city by this Act and discharging into the sea are hereby specially reserved and the Corporation shall not be entitled to interfere therewith or with the right to complete the same so far as under

construction (which is hereby reserved to them) in any manner of way nor shall anything in this Act take away prejudice affect or interfere with the rights of third parties to use the said sewers or with any arrangements made or to be made between the county council and such parties with reference to such use And in the event of the Corporation or any person having right from them using the said sewers or either of them so far as within the city for any Corporation purpose the Corporation shall pay to the said county council for such use such sum as may be agreed or failing agreement as may be fixed by an arbiter to be named by the sheriff on the application of either party.

A.D. 1900.

26. For the protection of the Duke of Buccleuch and Queensberry and his successors (all hereinafter included in the term "the Duke of Buccleuch") as owners of the lands and estate of Granton including Granton Harbour the following provisions shall have effect (that is to say):—

For protection of Duke of Buccleuch.

(1) For the purpose of this Act Granton Harbour shall be held to be the lands and heritages belonging or reputed to belong to the Duke of Buccleuch lying to the north or seaward of the dotted red line delineated upon the map signed in triplicate by the Right Honourable Earl Brownlow Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred one copy whereof shall within one month after the passing of this Act be deposited in the Office of the Clerk of the Parliaments another copy thereof shall be deposited with the town clerk at his office and another copy thereof shall be delivered to the Duke of Buccleuch:

(2) Nothing contained in the Edinburgh Municipal and Police Acts or in any byelaws or regulations made under the same shall prejudice or affect the rights powers and privileges possessed by the Duke of Buccleuch under his titles or conferred upon and held or at present exercised by him within the Granton Harbour limits under or in virtue of an Act of the seventh year of His Majesty King William IV. entitled "An Act to enable the Duke of Buccleuch and Queensberry to make and maintain a pier at Granton in the parish of Cramond and a road therefrom to join the road leading from Leith to Queensferry in the county of Edinburgh" and second an Act of the fifth year of Her present Majesty Queen Victoria entitled "An Act to extend the provisions of an Act of the seventh year of King William IV. relative to the pier of Granton in the county of Edinburgh" or otherwise:

A.D. 1900.

(3) The dean of guild court shall have no jurisdiction over any property belonging to the Duke of Buccleuch within the said Granton Harbour limits:

(4) The burgh assessments imposed by the Corporation under the Edinburgh Municipal and Police Acts upon the Duke of Buccleuch as owner and occupier of lands and heritages within the said Granton Harbour limits and his tenants as occupiers of lands and heritages within the said limits shall as long as the said harbour exists and is used as a harbour or docks and during the continuance of any agreement under subsection 8 of this section be restricted to one half of the maximum burgh assessments imposed or to be imposed as aforesaid upon owners and occupiers respectively of lands and heritages within the city and royal burgh for the time but such restriction shall not apply to rates and charges leviable under the Water Acts or the Gas Acts:

(5) Nothing contained in the Edinburgh Municipal and Police Acts shall prejudice or affect the rights powers and privileges held by the Duke of Buccleuch under or in virtue of sections 18 to 26 inclusive of the said recited Act of the fifth year of Her present Majesty Queen Victoria:

(6) The Corporation upon the annexation to the city of the said lands and heritages in the parish of Cramond belonging to the Duke of Buccleuch third described in section 7 of this Act shall free and relieve the Duke of Buccleuch of payment of the annual feu duty for and the expense of maintaining and upholding the road or street known as Granton Road situated partly within the parish of Cramond and partly within the burgh of Leith and extending from the city boundary in Ferry Road to Granton Square and there is hereby transferred to and vested in the Corporation all right competent to the Duke of Buccleuch to recover payment from the feuars or proprietors abutting upon or using the said road of the proportions of the said expense of maintenance and upkeep for which they may be respectively liable under their title deeds and the arrangement between the Duke of Buccleuch and the superior of said road:

(7) Until the said lands and heritages in the parish of Cramond belonging to the Duke of Buccleuch annexed to the city by section 7 of this Act are included by statute within the compulsory area of water supply under the Water Acts the Corporation shall pay to the Duke of Buccleuch annually the difference in amount between the rate paid by him to

A.D. 1900.

the Water Trustees for water used for domestic and trade purposes and the amount which would have been paid by him had the said lands and heritages been within the said area of compulsory supply:

(8) The Corporation shall be bound if and when required by the Duke of Buccleuch to undertake the police watching of the lands and heritages within the foresaid Granton Harbour limits on such terms and in such way and manner as may be agreed between the Corporation and the Duke of Buccleuch or failing agreement as may be fixed by arbitration:

(9) The Corporation subject to payment of compensation under the provisions of the Lands Clauses Acts shall have power to form an outlet sewer or drain in the district annexed situated within the parish of Cramond which shall discharge at or beyond low-water mark at a suitable point to the west of the rock known as General's Rock Provided always that the line level and depth of such outlet sewer or drain shall be first approved of and agreed upon by the Duke of Buccleuch and failing agreement as the same shall be fixed by an engineer to be appointed by the Board of Trade:

(10) Nothing in this Act contained shall prejudice or affect the agreement entered into between the Duke of Buccleuch and the Edinburgh and Leith Corporations Gas Commissioners scheduled to and confirmed by the said Gas Commissioners Act of 1898 and the disposition or conveyance which followed thereupon which is dated the seventh and is recorded in the division of the general register of sasines applicable to the county of Edinburgh the eleventh both days of November one thousand eight hundred and ninety-eight.

27. The amendments in this Act of sections 42 44 and 50 of the Act of 1891 shall not apply to the houses or buildings erected or to be erected upon the ground shown on the feuing plan of part of the Craigmillar Estate approved of by the Corporation on seventh April one thousand eight hundred and ninety-seven.

For protection
of Robert
Gordon
Gordon
Gilmour of
Craigmillar
and Liberton.

28. For the protection of the proprietors of the estate of Craigen-tinny and their successors (in this section called "the proprietors") the following provisions shall have effect (that is to say):—

For protec-
tion of
Craigen-
tinny.

(1) Subject as hereinafter in this section mentioned it shall not be lawful for the Corporation or any local authority or person within the city in the exercise of the powers of the Edinburgh Municipal and Police Acts or any other Acts to prejudice restrict lessen or interfere with the rights powers and privileges of the proprietors to use the said estate or any part thereof for

A.D. 1900.

irrigation purposes as has hitherto been done all which rights powers and privileges shall remain in force as if the estate of Craigentinny had not been included within the city and royal burgh and as if this Act had not been passed nor shall it be lawful for the Corporation or any local authority or person within the city to injuriously affect or interfere with the irrigation of lands on the said estate or to diminish or intercept or otherwise injuriously affect the supply of sewage or sewage water used for such irrigation or to deepen divert cover over or otherwise interfere with the stream known as Craigentinny Burn passing through the said estate or the carriers feeders or distributors therefrom or with the effluents from the irrigation works and the said Craigentinny Burn so far as passing through the said estate and the carriers feeders and distributors connected with the irrigation of lands on the said estate shall not vest in or belong to or be under the management and control of the Corporation Provided always that if the Corporation shall hereafter deem it necessary in the public interest to interfere with or affect any of the rights powers or privileges hereinbefore secured or to injuriously affect or interfere with the irrigation of lands on the said estate or to diminish or intercept or otherwise injuriously affect the supply of sewage or sewage water used for such irrigation or to deepen divert cover over or otherwise interfere with the said Craigentinny Burn or the carriers feeders or distributors therefrom or with the effluents from the irrigation works the Corporation shall be at liberty to do so upon giving to the proprietors not less than twelve months' notice and upon obtaining an order granted by the sheriff declaring that it is desirable in the public interest that the Corporation should have such powers and also upon the Corporation making full compensation for any damage in respect of any loss of or interference with the said rights and for any injury or deterioration in value which may be thereby caused to the land now used for purposes of irrigation or any part thereof as such compensation may be agreed upon between the parties or failing agreement shall be settled by arbitration in the manner provided by the Lands Clauses Acts Provided also that no such order shall be made by the sheriff until after due inquiry at which all parties interested shall be entitled to be heard :

- (2) Nothing herein contained shall prejudice or affect the provisions of the Public Health (Scotland) Act 1897 provided that in the application of the said Act the portions of the

said estate at present used for agricultural pastoral market garden or irrigation purposes shall be deemed to be in a rural district within the meaning of section 189 of the said Act so long as the same are used for any of the said purposes or until the Local Government Board for Scotland after considering the objections (if any) of any local authority or person affected thereby shall declare and the said Board is hereby empowered at any time and from time to time on the application of the Corporation or any such local authority or person to declare that the said portions or any part of them by reason of the altered condition of the same or the proximity within a distance of a hundred feet of houses or buildings on the said estate have ceased to be of a rural character and thereupon the lands included in such declaration shall cease to be deemed to be in a rural district :

- (3) In the construction of the sewer or drain (Work No. 8 in this Act) the Corporation shall provide all necessary and sufficient accesses to the seashore for cart traffic as free and convenient as at present and shall make and maintain all necessary works for that purpose to the reasonable satisfaction of the proprietors' engineer :
- (4) The Corporation shall during the construction of the said sewer or drain make sufficient provision to the reasonable satisfaction of the proprietors for preventing any interference with the irrigation works on the said estate or the discharge of the effluents therefrom :
- (5) On the construction of Work No. 8 the proprietors shall at the cost of the Corporation forthwith connect or permit to be connected therewith the existing outlets for the effluent sewage at the points where these intercept or cross the said Work No. 8 :
- (6) If the proprietors shall desire at any time to connect any sewer or drain running through the said estate or any effluent sewage outlets and pipes from the irrigation works on the said estate with the said Work No. 8 the Corporation shall permit such connexions to be formed free of any charge whatever Provided always that any work so done shall be to the reasonable satisfaction of the burgh engineer :
- (7) Nothing in this Act contained shall prejudice or affect the claim of the proprietors for compensation in respect of wayleave or land purchased or taken or any legal right belonging or competent to them injuriously affected under the powers of this Act :
- (8) During the period of three years from and after the term of Whitsunday one thousand nine hundred the burgh assessments

A.D. 1900.

imposed by the Corporation under the Edinburgh Municipal and Police Acts upon that portion of the estate of Craigentenny situated within the districts annexed shall not exceed two shillings in the pound upon the yearly value thereof for the purpose of such assessments but the said limitation of two shillings in the pound shall not apply to or include rates and charges leviable under the Water Acts or the Gas Acts :

- (9) The amendments contained in this Act of sections 42 44 and 50 of the Act of 1891 shall not apply to the lands contained in the feu charters granted by the proprietors in favour of John McKnight and Alexander Mitchell prior to first March one thousand nine hundred.

Assessments
&c.

29. In imposing or levying the rates and assessments under the Edinburgh Municipal and Police Acts and this Act within the city and royal burgh the following provisions shall have effect :—

- (1) Notwithstanding the date of the commencement of this Act the Corporation shall levy within the districts annexed the rates and assessments imposed upon the city and royal burgh for the year from Whitsunday one thousand nine hundred to Whitsunday one thousand nine hundred and one and may issue such notices and adopt such proceedings as may be necessary with a view to the levying and the recovery of such rates and assessments within the districts annexed and no commissioners county council or other assessing authorities shall impose or levy rates or assessments for that year except for parochial and school purposes within the districts annexed or within any part thereof :
- (2) In consideration of the burgh assessments being levied within the districts annexed during the period between Whitsunday one thousand nine hundred and the first day of November in that year the Corporation shall pay over to the county council a sum equal to sevenpence per pound on the amount of the rental of lands and heritages within the districts annexed on which rates and assessments might have been imposed by the county council for the year from Whitsunday one thousand nine hundred to Whitsunday one thousand nine hundred and one had this Act not been passed and shall allow to the occupiers of such lands and heritages within the said districts other than the occupiers of the lands and heritages which under the Edinburgh Municipal and Police Acts are assessed on one fourth of the yearly value thereof an abatement of three-pence per pound on the amount of their rental for the said year from Whitsunday one thousand nine hundred to Whitsunday one thousand nine hundred and one :

A.D. 1900.

- (3) During the period of three years from and after the term of Whitsunday one thousand nine hundred the burgh assessments imposed by the Corporation under the Edinburgh Municipal and Police Acts upon all lands and heritages within those parts of the districts annexed which are situated within the parish of Duddingston shall not exceed two shillings in the pound of yearly rateable value upon owners and occupiers one third whereof shall be payable by owners and the remaining two thirds by occupiers but the said limitation of two shillings in the pound shall not apply to or include rates and charges leviable under the Water Acts or the Gas Acts :
- (4) During the period of five years from and after the term of Whitsunday one thousand nine hundred there shall be allowed to all occupiers of lands and heritages within the districts annexed (other than those which are situated within the parish of Duddingston and the lands occupied by the Duke of Buccleuch or his tenants within the Granton Harbour limits the Edinburgh and Leith Corporations Gas Commissioners A. B. Fleming and Company Limited Robert Irvine and Robert Mushet and Company) a deduction from the maximum burgh assessments payable by occupiers under the Edinburgh Municipal and Police Acts of a sum equal to sixpence per pound on the amount of the rentals in respect of which such burgh assessments are imposed on occupiers but such deductions shall not apply to the rates and charges leviable under the Water Acts or the Gas Acts :
- (5) During the period of five years from and after the term of Whitsunday one thousand nine hundred there shall be allowed to all occupiers of farm buildings and lands occupied solely for farming and agricultural purposes within the districts annexed situated within the parish of Duddingston a deduction from the maximum burgh assessments payable by such occupiers under the Edinburgh Municipal and Police Acts of a sum equal to sixpence per pound on the amount of the rentals in respect of which such burgh assessments are imposed but such deduction shall not apply to rates and charges leviable under the Water Acts or the Gas Acts :
- (6) Whereas the Edinburgh and Leith Corporations Gas Commissioners are owners and occupiers of certain lands and heritages at Granton within the districts annexed situated within the parish of Cramond and are in course of erecting extensive gasworks thereon which will not be completed for many years during which period the works of the said gas commissioners now situated within the existing city and royal burgh will continue to be used and be liable to assessment it

A.D. 1900.

is hereby provided that during the period of seventeen years from and after the term of Whitsunday one thousand nine hundred the burgh assessments imposed by the Corporation under the Edinburgh Municipal and Police Acts upon the said commissioners as owners and occupiers of lands and heritages within the districts annexed in the said parish of Cramond used solely for the purposes and assessed as part of their gas undertaking shall be restricted to one half of the maximum burgh assessments imposed as aforesaid upon owners and occupiers of lands and heritages within the city and royal burgh for the time but such restriction shall not apply to rates and charges leviable under the Water Acts or the Gas Acts and in respect of the said restriction the obligations imposed on the Corporation within the city under the Edinburgh Municipal and Police Acts with regard to lighting and cleansing and the construction of sewers and drains shall not extend or apply to the said lands and heritages falling within the said restriction while such restriction continues Provided always that the provisions of this subsection shall not apply to any dwelling-houses which may be erected upon the said lands of the said gas commissioners:

- (7) During the period of seven years from and after the term of Whitsunday one thousand nine hundred the burgh assessments imposed by the Corporation under the Edinburgh Municipal and Police Acts upon the lands and heritages within the districts annexed situated in the said parish of Cramond which at the date of the passing of this Act belong to A. B. Fleming and Company Limited Robert Irvine and Robert Mushet and Company respectively shall be restricted to one half of the maximum burgh assessments imposed as aforesaid upon owners and occupiers of lands and heritages within the city and royal burgh for the time but such restriction shall not apply to rates and charges leviable under the Water Acts or the Gas Acts and in respect of the said restriction the obligations imposed on the Corporation within the city under the Edinburgh Municipal and Police Acts with regard to lighting and cleansing and the construction of sewers and drains shall not extend or apply to the said lands and heritages falling within the said restriction while such restriction continues.

As to lighting &c. in certain areas.

30. The obligations imposed on the Corporation within the city under the Edinburgh Municipal and Police Acts and this Act with respect to lighting and cleansing and the construction of sewers and drains shall not extend or apply to the farm buildings and lands occupied solely for farming agricultural or pastoral purposes within

the districts annexed unless and until such buildings and lands respectively shall cease to be used for such purposes and the Corporation may at any time and from time to time apply to the Local Government Board for Scotland to have it declared that such buildings and lands respectively or any part or parts thereof have been feued or come to be so occupied as to render it expedient that such obligations should extend and apply thereto or to any parts or portions thereof and the Local Government Board after hearing objections (if any) of parties affected may make such declaration in the matter as they think just.

A.D. 1900.

31. With respect to any lands within the districts annexed used solely for agricultural pastoral or irrigation purposes or for market gardens together with any farm houses farm steadings or other buildings occupied in connexion therewith the provisions of the Edinburgh Municipal and Police Acts as to the accumulation of manure the working and manuring of the land the keeping of dogs pigs and poultry and the discharge of firearms shall not come into operation until such lands housings steadings or buildings shall have ceased to be of such character and the Corporation may at any time and from time to time apply to the Local Government Board for Scotland to have it declared that such lands houses steadings or buildings or any of them or any portion thereof by reason of the altered condition of the same or of the neighbourhood have ceased to be of an agricultural or pastoral character or to be used for irrigation purposes or for market gardens and therefore ought to fall under the said provisions of the Edinburgh Municipal and Police Acts which the said Local Government Board after hearing the objections if any of the parties affected thereby is hereby empowered to declare and the powers and jurisdiction of the dean of guild court shall not extend to farm houses farm buildings or farm steadings actually existing at the time of the commencement of this Act or to the repairs improvement or reconstruction thereof until they cease to be of an agricultural or pastoral character or to be used as aforesaid as hereinbefore provided Provided always that nothing in this section contained shall affect the application to such lands houses steadings or other buildings of the other provisions of the Edinburgh Municipal and Police Acts or of the Public Health (Scotland) Act 1897 or Acts amending the said Acts or any other public general Act applicable to the same.

As to agricultural lands.

32. For the purposes of the Purification Acts the following provisions shall have effect (that is to say) :—

- (1) "The city of Edinburgh" shall except where otherwise provided mean and comprehend the city as extended and defined by this Act :

Water of Leith Purification and Sewerage Commission.

A.D. 1900.

(2) "The landward district" shall mean the district as defined in the Purification Acts (and any extension thereof as thereby provided for) except such part of the landward district as is by this Act included in the city. Provided always that for the purposes contained in the proviso to section 49 of the Water of Leith Purification and Sewerage Act 1889 "the landward district" therein referred to shall mean the landward district as defined in that Act:

(3) The Corporation shall in lieu of the assessing authorities within that part of the districts annexed which at and prior to the commencement of this Act was within the landward district impose assess and levy and collect and recover all rates and assessments required to be imposed levied and collected and recovered by the Corporation of Edinburgh and the local authorities in the said districts respectively under the Purification Acts for the purposes of those Acts on and from the owners of all lands and heritages within the city and royal burgh of Edinburgh in accordance with the provisions of those Acts and this Act and sections 72 74 75 77 and 80 of the said Act of 1889 are hereby amended accordingly. Provided always that where under the Purification Acts any lands and heritages presently assessed by the landward local authorities for the said assessments are by this Act included within the extended boundaries of the city and are assessed therein by the Corporation under the provisions of this Act for the purposes of the Purification Acts such lands and heritages shall for assessment purposes under the Purification Acts be and are hereby excluded from the area assessable by the landward local authorities and the same shall in respect of the assessments imposed by the Purification Acts be assessed in all respects similarly with the rest of the city and sections 73 and 74 and the Second Schedule of the said Act of 1889 are hereby amended accordingly.

Existing
officers and
servants.

33. When any constable who at the commencement of this Act belongs to the police force of the county of Midlothian and acts as a constable of that county exclusively within any part of the area which is by this Act incorporated with the city and royal burgh such constable shall on and after that date and if his services are not required by the chief constable of the said county become a constable of the city and royal burgh.

Compensa-
tion to clerk
of peace &c.

34.—(1) The Corporation shall pay to the persons now holding the respective offices of clerk of the peace and procurator fiscal of the justices of the peace of the county of Midlothian compensation in respect of any loss which they may respectively sustain by

diminution of salary or emoluments consequent upon the extension of the boundaries of the city hereby authorised. A.D. 1900.

(2) In the event of the compensation in this section mentioned appointed to be paid not being agreed between the parties the same shall be determined by an arbiter to be named by the Secretary for Scotland and the decision of such arbiter shall be final and interest at the rate of four pounds per centum per annum shall run on the amount of any compensation from the respective dates at which it is agreed or determined as aforesaid till the same is paid.

35. The Corporation may make a supplementary assessment for any portion of the year from Whitsunday to Whitsunday and the provisions of section 17 of the Act 17 and 18 Vict. cap. 91 shall be applicable accordingly. Supplementary assessment roll may be made.

36. Subject to the provisions of this Act the Corporation may borrow money for any of the purposes for which money may be borrowed and may grant security therefor on the burgh assessments within the city and royal burgh as extended and defined by this Act and all the provisions of the Edinburgh Municipal and Police Acts with respect to money already borrowed and to be borrowed and the security therefor and the provisions with respect to sinking fund shall apply in all respects to the city and royal burgh as extended and defined by this Act in the same way and to the same effect as such provisions now apply to the existing burgh. As to security for borrowed money.

37. The Corporation are subject to the provisions of this Act hereby authorised and required to assess levy and collect within the city and royal burgh and recover apply and use for carrying out the powers objects and purposes of the Edinburgh Municipal and Police Acts and this Act or any of them and for the acquisition of lands and heritages and servitudes easements or other property which may be required in connexion therewith the burgh assessments under their control authorised by the Edinburgh Municipal and Police Acts and this Act or so much thereof as may be necessary therefor in the way and manner and by the same means as are provided in the said Acts in relation to the existing burgh. Power to apply burgh assessments.

38. Nothing in this Part of this Act shall affect—

- (1) The county of Midlothian the parliamentary burgh of Edinburgh or the limits of the same respectively so far as regards the election of members to serve in Parliament for the said county and burgh respectively ;
 - (2) The teinds payable out of the lands situated within the city and royal burgh or the rights privileges and emoluments of the ministers and kirk sessions of the parishes within the same ;
- Parliamentary elections teinds &c. not affected.

A.D. 1900.

(3) The holdings or tenure of any lands or heritages or the records wherein the rights thereof or any deed or writing affecting the same may be registered :

Provided that no part of the districts annexed nor any persons therein shall be subjected to any thirlage or liability for land tax to which such districts or persons were not subject previous to the commencement of this Act.

Parochial
arrange-
ments not to
be affected.

39. The lands and heritages within the districts annexed shall remain parts and portions of the parishes within which they now lie and shall not in so far as regards the settlement relief or management of the poor the erection and maintenance of district lunatic asylums the payment of poor's rates or any burdens for purposes other than those for which the said lands and heritages will be assessed under the provisions of the recited Acts and this Act which now affect or which may hereafter affect such parishes or other parochial arrangements be affected by any of the provisions of this Act.

Saving for
commis-
sioners of
supply and
county
council.

40. Nothing in this Act shall prejudice or interfere with the rights of the commissioners of supply or the county council of the county of Midlothian to recover all arrears of assessment imposed by and due to them or any of them in respect of subjects within the districts annexed for any year prior to the fifteenth day of May one thousand nine hundred.

Saving rights
of Crown
in fore-
shore.

41. Nothing contained in this Act shall authorise the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any right in respect thereof belonging to the Queen's most Excellent Majesty in right of Her Crown and under the management of the Board of Trade without the previous consent in writing of the Board of Trade on behalf of Her Majesty (which consent the Board of Trade may give) neither shall anything in this Act contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the Queen's Majesty.

Saving
rights of
Crown.

42. Nothing contained in this Act shall authorise the Corporation to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to the Queen's most Excellent Majesty in right of Her Crown and under the management of the Commissioners of Woods without the consent in writing of the Commissioners of Woods on behalf of Her Majesty first had and obtained for that purpose (which consent such Commissioners are hereby authorised to give) neither shall anything in this Act contained extend to take away prejudice diminish or

alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the Queen's Majesty. A.D. 1900.

PART III.—NEW WORKS.

43. Subject to the provisions of this Act and to the powers of deviation hereinafter mentioned the Corporation may in the lines and situation and upon the lands in that behalf delineated on the deposited plans and described in the deposited books of reference and according to the levels shown on the deposited sections make construct maintain and use the works hereinafter mentioned or some of them or some part or parts thereof together with all necessary and proper works and conveniences connected therewith or incidental thereto respectively. Power to make street widenings and other works.

44. The works hereinbefore referred to are the following (that is to say) :— Description of works.

- (1) A widening alteration and improvement (Work No. 1) of the bridge on both sides thereof crossing the river of Water of Leith at Stockbridge commencing at a point in line with the centre line of Hamilton Place and Saunders Street and terminating in Deanhaugh Street at a point in line with the southern line of Leslie Place :
- (2) A widening alteration and improvement (Work No. 2) of part of Salisbury Place commencing at a point in line with the western gable of Nos. 1 and 1A Salisbury Place and Nos. 52 and 53 Minto Street and terminating on the western side of the said Minto Street at the line of the kerb of the foot pavement :
- (3) A widening alteration and improvement (Work No. 3) of part of Crosscauseway commencing at a point in Nicolson Street two yards or thereabouts eastwards from the west side of the said last-mentioned street and terminating in West Crosscauseway at a point in line with the eastern side of Quarry Close :
- (4) A widening alteration and improvement (Work No. 4) of part of Lothian Road commencing at the kerb line of the foot pavement on the south side of Princes Street at or near the north-west corner of St. John's Episcopal Church and terminating at the south-western corner of the grounds of the said church :
- (5) A footbridge (Work No. 5) over or across Warriston Close to connect the portions of the Corporation buildings and offices on both sides of the said close commencing at a point in the staircase of the new Corporation buildings forty-five yards or thereabouts measured in a northerly direction from the north side of High Street and terminating in the Corporation buildings on the west side of the said close at a point forty-five

A.D. 1900.

yards or thereabouts measured in a northerly direction from the north side of High Street :

- (6) An extension of the widening alteration and improvement (Work No. 6) of part of the street called North Bridge Street described in section 6 of the North Bridge Improvement Act 1894 which extension of such widening alteration and improvement will commence in North Bridge Street in line with the northern side of Milne Square and will terminate in the centre of High Street :

All which works before described will be situate in the city parish of Edinburgh and city and royal burgh of Edinburgh :

- (7) A sewer or drain (Work No. 8) situate and being within the city and royal burgh of Edinburgh and the parish of Duddingston and the parish of Leith commencing in the said city and royal burgh and parish of Duddingston in the county of Midlothian at a point at the northward or seaward end of Pipe Street Portobello by a junction with the existing outlet sewer of the Corporation in Pipe Street and terminating in the parish of Leith and county of Midlothian by a junction with the Powburn outlet sewer of the Corporation where the said sewer crosses the foreshore at a point one hundred and sixty yards or thereabouts eastwards from the gatekeeper's house at Seafield level crossing on the Leith and Portobello branch of the North British Railway Provided that Work No. 8 between the point marked on the deposited plans "1 mile" and the termination of the said Work No. 8 shall not be diverted nearer to the line of railway of the North British Railway Company than the centre line as shown on the deposited plans.

For protection of Gorgie Mill Dam.

45. Nothing in this Act shall in any way authorise or empower the Corporation to interfere with or perform any operations upon Gorgie Dam or Weir or the solum thereof or the bed or banks or retaining walls of the water of Leith at or near the said dam or the sluice and mill lead leading therefrom to Gorgie Mills or the retaining walls of said mill lead or to diminish divert obstruct or in any way interfere with the water in the said dam or flowing down the said mill lead and the rights (if any) of the owners of Gorgie Mills and lands in the said dam and solum thereof sluice mill lead and water shall remain unaffected as if this Act had not been passed.

Works below high-water mark not to be commenced

46. The Corporation shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous

consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Corporation shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Corporation and the amount of such costs and charges shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

A.D. 1900.
—
without
consent of
Board of
Trade.

47. If the works described in this Part of this Act and shown on the deposited plans are not completed within five years from the passing of this Act then on the expiration of that period the powers hereby granted for the execution of the same shall cease except as to so much thereof as is then completed.

Period for
completion
of works.

48. For the protection of the Water of Leith Purification and Sewerage Commissioners the following provisions shall have effect (that is to say):—

Protection
of works of
Water of
Leith Com-
missioners.

(1) If in the construction of any of the works by this Act authorised any drains or sewers or other works of the Commissioners are or may be interfered with the Corporation shall before proceeding to interfere and appropriate or stop up any lands or streets in or under which any such drains or sewers or other works are laid give at least fourteen days' previous notice of their intention so to do to the clerk to the commissioners and shall submit a plan and section showing the intended alterations proposed by which any of such drains and sewers or other works shall or may be affected or interfered with and the same shall be subject to the reasonable approval of the commissioners and any alteration or removal or diversion of any such drains or sewers or manholes accesses or other works shall be done and executed by the commissioners or by persons to be employed by them and the expense thereof and all expenses and charges incident thereto and consequent on any of the said works or operations shall be repaid by the Corporation to the commissioners:

(2) If any difference shall at any time arise between the Corporation and the commissioners with respect to any of the matters referred to in this section or with reference to the time taken or required for executing any works or operations herein referred

A.D. 1900.

to such difference shall be submitted to and determined by an engineer to be agreed on by the Corporation and the commissioners or failing such agreement to be appointed by the sheriff on the application of either the Corporation or the commissioners.

Confirmation
of agree-
ment in
Third
Schedule.

49. The agreement set forth in the Third Schedule to this Act is hereby confirmed and made binding on the parties thereto respectively.

PART IV.—TRAMWAYS.

Power to
make tram-
ways.

50. The Corporation may make form lay down work use and maintain the several tramways hereinafter described all in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all necessary and proper rails plates sleepers tubes pulley pits underground chambers manholes shafts and apparatus ropes cables chains overhead wires posts poles and wires machinery engines engine houses crossing and passing places junctions works and conveniences connected therewith.

The said tramways are the following:—

Tramway No. 1 (double line) 1·88 chains or thereabouts in length wholly situate in the parish of Duddingston and city and royal burgh of Edinburgh commencing by a junction with the tramway of the Corporation in High Street Portobello authorised by the Corporation Act 1899 at a point 2·25 chains or thereabouts westwards from the western side of Pipe Street Portobello and at a point ·48 chains or thereabouts westwards from the said western side of said Pipe Street and passing thence in a southerly direction by curved line across High Street Portobello and terminating in the Power House situated on the southern side of High Street Portobello Tramway No. 1 will be double line throughout except that for a distance of ·35 chains or thereby at its southern termination it will be laid as a single line.

DOUBLING OF TRAMWAYS.

Tramway No. 2 (double line) 2·65 chains or thereabouts in length commencing by a junction with the existing tramway of the Corporation in Salisbury Place at a point 1·64 chains or thereabouts westwards from the western side of Minto Street and passing thence in an easterly and north-easterly direction by a curved line and terminating by a junction

with the existing tramway of the Corporation in Newington Road · 7 chains or thereabouts northwards from the northern side of Salisbury Place : A.D. 1900.

Tramway No. 3 (double line) one furlong 5 · 5 chains or thereabouts in length commencing by a junction with the existing tramway of the Corporation in Lauriston Place at a point 2 · 73 chains or thereabouts north-eastwards from the northern side of Brougham Street and passing thence in a north-easterly and easterly direction along the roadway of Lauriston Place and terminating by a junction with the existing tramway of the Corporation at a point in Lauriston Place 1 · 3 chains or thereabouts westwards from the line of the western side of Graham Street :

Tramway No. 4 (double line) 5 · 6 chains or thereabouts in length commencing by a junction with the existing tramway of the Corporation in Lauriston Place at a point · 8 chains or thereabouts westwards from the western gable of the westmost lodge of the Royal Infirmary and passing thence in an easterly direction along the roadway of Lauriston Place and terminating by a junction with the existing tramway of the Corporation at a point in Lauriston Place in line with the eastern gable of the eastmost lodge of the said Royal Infirmary :

Tramway No. 5 (double line) 2 · 3 chains or thereabouts in length commencing by a junction with the existing tramway of the Corporation in Morningside Road at a point · 6 chains or thereabouts northwards from the northern side of Churchhill and passing thence in a south-easterly and easterly direction by curved lines into and along the roadway of Churchhill and terminating by a junction with the existing tramway of the Corporation at a point in Churchhill 1 · 40 chains or thereabouts eastwards from the eastern side of Morningside Road :

Tramway No. 6 (single line) 3 · 63 chains or thereabouts in length commencing by a junction with the existing tramway of the Corporation in Home Street at a point · 38 chains or thereabouts northwards from the northern side of Thornybauk and passing thence in a south-westerly westerly and north-westerly direction along the roadway of Thornybauk and terminating by a junction with the existing tramway of the Corporation at a point · 30 chains or thereabouts north-westwards from a point in line with the southern boundary of the premises belonging to Messrs. John Smith & Co. paper stock merchants Thornybauk :

A.D. 1900.

The said doubling of tramways will be situate within the city parish of Edinburgh and city and royal burgh of Edinburgh.

Where in the description of the proposed tramways any distance is given with reference to any street or road which intersects or joins the street or road in which the tramway is to be laid the distance is to be taken as measured from the point at which lines drawn along the centres of the two streets or roads and produced would intersect each other and a point described as being opposite a street or road is to be taken unless otherwise stated as opposite the centre of the street or road.

Tramways to be inspected before being opened.

51. The tramways authorised to be constructed by this Act shall not be opened for public traffic until the same have been inspected and certified to be fit for such traffic by the Board of Trade.

Period for completion of tramways.

52. The tramways authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Corporation for executing the same shall cease except as to so much thereof as shall then be completed.

Tramways to be part of Corporation tramways.

53. The tramways and the works connected therewith by this Act authorised to be constructed shall for all purposes of rates tolls and charges and for all other purposes whatsoever be part of the Corporation tramways and tramway undertaking.

For protection of gas and water mains.

54. Sections 13 14 and 15 of the Corporation Tramways Act 1893 are hereby incorporated in this Act and shall apply to the tramways authorised by this Act in the same way and to the same effect as the said sections apply to the tramways mentioned in the said Act.

Application of sections of Corporation Tramways Act 1896.

55. The provisions of sections 13 to 20 22 23 25 to 30 and 35 to 39 of the Corporation Tramways Act 1896 shall so far as the same are applicable extend and apply to the tramways by this Act authorised in as full and complete a manner as if the said sections were severally re-enacted in this Act.

Provision as to general Tramway Acts.

56. Nothing in this Act contained shall exempt the Corporation or their lessees or the Corporation tramways from the provisions of any general Act relating to tramways now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates and charges authorised to be taken in respect of the Corporation tramways.

PART V.—ACQUISITION OF LANDS.

Power to acquire lands.

57. The Corporation may subject to the provisions of this Act purchase take and acquire compulsorily or by agreement and may

enter upon hold use and appropriate the lands houses and property respectively shown on the deposited plans and described in the deposited books of reference or any part or parts of the same for the respective purposes following (that is to say):—

A.D. 1900.

- (1) For the purposes of a public park for the city and for such other purposes as the Corporation may deem expedient the lands and other property situated lying and being within the area marked A delineated and numbered on the deposited plans and books of reference bounded by a line commencing at a point on the northern side of Gorgie Road at or near the tramway terminus thirty-seven yards or thereby measuring in a south-westerly direction from the south-east corner of the "Gushet House" occupied by Thomas Balsillie and David Gray situated on the eastern side of the junction of Gorgie Road and the road leading from the said Gorgie Road to Corstorphine Road in line with and in continuation of the north side of the said Gorgie Road to the east and extending in a south-westerly direction along the northern side of the said Gorgie Road as far as the point where the Gorgie Mill Lade is joined to the Gorgie Dam thence in a north-westerly direction along the north side of the road leading to Saughton Hall Mains and the lodge of Saughton Hall for a distance of two hundred and seventy yards or thereby thence across the north-east side of the bridge across the river of Water of Leith to the south-eastern corner of the entrance to Saughton Hall thence in a north-westerly direction for a distance of twenty-seven yards or thereby across the said entrance to the south-eastern corner of the grounds in connexion with Saughton Hall Mains Cottages thence in a north-westerly direction for a distance of thirty-nine yards or thereby to the north-east corner of said Saughton Hall Mains Cottages thence in a south-westerly direction parallel with and at a distance of twenty feet from the back wall of said cottages to the wall which bounds on the north-east Saughton Hall Mains Farm and farmyard thence in a north-westerly direction along the said wall on the north-east side of the farm or occupation road and in continuation along the fence on the north-east side of said occupation road as far as the south-eastern corner of the bridge carrying the North British Railway lines Edinburgh to Glasgow one hundred and fifteen yards or thereby measuring in a westerly direction from the Saughton signal-box thence in a north-easterly direction along the southern boundary of said railway to the south-western corner of the bridge carrying said railway over and across the road leading from Gorgie Road to Corstorphine Road thence across said road to the south-east

A.D. 1900.

corner of the said bridge thence in a north-easterly direction along the southern boundary of the said railway to the south-western corner of the railway bridge across the river of Water of Leith near Damhead thence in a north-easterly direction for a distance of fifteen yards or thereby to the southern pier of said bridge thence in an easterly direction for a distance of five yards or thereby to the centre of the river of Water of Leith thence along the centre of said river in a south-westerly direction for a distance of seventy-three yards or thereby thence in a south-easterly direction across the said river and the banks thereof to the boundary wall or fence separating Damhead Farm from the said river thence in a southerly south-westerly and southerly direction to a point thirty-one yards or thereby measuring along the side of the said river in a northerly direction from the side of the road leading from Gorgie Road to Corstorphine Road thence in a southerly direction along the side of the river for a distance of forty-three yards or thereby thence in a southerly and south-westerly direction along the western boundary of said road to the point first-mentioned and also a right of access by the road and bridge leading from Gorgie Road to Saughton Hall Mains as far as the entrance gate to Saughton Hall under burden of one half of the expense of the maintenance of the said road and bridge all lying within the city parish of Edinburgh and city and royal burgh :

- (2) For the purpose of providing a tramway power station at Portobello and for access thereto the lands houses and other property situated lying and being within the area marked B delineated and numbered on the deposited plans and books of reference bounded by a line commencing in the south side of High Street at the western corner of High Street and the lane leading to James' Court and other property and extending in a south-westerly direction along the north-western side of said lane for a distance of forty-nine yards or thereby thence in a south-westerly direction across said lane to the north-west corner of the Mission Hall premises in rear of the Mission Hall Adelphi Place thence in a south-westerly and westerly direction along the north-western boundary of said Mission Hall and along the back wall of premises Nos. 12 14 and 16 Adelphi Place to the eastern side of the Figgate Burn thence in a south-westerly direction along the eastern side of said Figgate Burn for a distance of twenty-seven yards or thereby thence in a north-westerly direction across the said burn and in continuation across Henderson Row to the south-eastern corner of premises No. 20 Henderson Row thence in a north-westerly direction along the

southern boundary of said premises to the eastern wall of Abercorn Brick and Tile Works thence in a north-easterly direction along the said eastern wall and in continuation across the said Figgate Burn and still further in continuation along the back wall of Hume's Cottages and along the western boundary of Nos. 11 and 11B High Street and in continuation to the kerb line of the foot pavement thence in a south-easterly direction along the said kerb line to a point in the same opposite the western side of the lane leading to James' Court thence in a south-westerly direction to the point first mentioned all lying within the parish of Duddingston and city and royal burgh:

A.D. 1900.

- (3) For the purpose of providing additional accommodation and access at and in connexion with the depôt of the cleaning department of the Corporation at Burnhouse the lands houses and other property belonging to or reputed to belong to the Earl of Morton and Stark's trustees situated lying and being within the area marked D delineated and numbered on the deposited plans and books of reference bounded by a line commencing in the east side of the diverted public road Glasgow to Edinburgh by East Calder at its point of junction with the northern side of the old disused public road opposite the cart entrance to the Camps Station (goods) and extending in a north-easterly easterly and south-easterly direction along the southern side of the said diverted public road and in continuation to the southern side of the said old public road now leading to Camps thence in a westerly direction along the southern side of said public road forming the northern boundary of property belonging to the Corporation to a point in line with the eastern side of the cross road leading to Camps thence in a northerly direction across the said old public road to the north side of the same thence in a westerly direction across the said cross road leading to Camps and in continuation along the northern boundary of property belonging to the Corporation to a point two hundred and ten yards or thereabouts measured in an easterly direction along the southern side of the site of the said old public road from the centre of the said cart entrance of the Camps Station (goods) thence in a southerly direction to the line of fence situated on the west side of and skirting the eastmost branch siding of the North British Railway and further in continuation to the northern side of the westmost branch siding of the North British Railway thence in a westerly direction for a distance of one hundred yards or thereabouts to the eastern side of the Camps Branch of the Caledonian

A.D. 1900.

Railway thence in a north-westerly direction in a straight line to a point twenty yards or thereabouts eastwards from the centre of the said cart entrance to Camps Station (goods) on the southern side of the said old public road and in continuation to the northern side of said old public road thence in a westerly direction to the point first mentioned all lying within the parish of Kirknewton and county of Midlothian. Provided that the Corporation shall not under the powers of this Act acquire or interfere with any lands in the said area of the Caledonian Railway Company :

(4) For the purpose of improving the cattle market the lands houses and other property situated lying and being within the area marked E delineated and numbered on the deposited plans and books of reference bounded by a line commencing on the west side of the Vennel at the south-eastern corner of the Women's Shelter and Metropole (Salvation Army Barracks) Vennel and extending in a south-westerly direction for a distance of thirty yards or thereby along the southern boundary of the said Women's Shelter and Metropole and ground in rear thereof thence in a north-westerly and westerly direction along the northern boundary of the property known as Wemyss Terrace for a distance of sixty-three yards or thereby thence in an easterly direction along the northern boundary of the Cattle Market Lady Lawson Street to the north-east corner thereof thence in a south-easterly direction along the eastern boundary of the same to the northern boundary of the Jewish Synagogue premises Graham Street thence in a north-easterly and easterly direction along the southern boundary of the ground belonging to and in connexion with Nos. 11 13 15 and 17 Vennel as far as the western boundary of said Vennel thence in a north-westerly direction along the western boundary of the said Vennel to the point first mentioned all lying within the city parish of Edinburgh and city and royal burgh :

(5) For the purpose of more convenient access to the Tollcross tramway power station of the Corporation and to effect the improvement of the neighbourhood thereof the lands houses and other property situated lying and being within the area marked F delineated and numbered on the deposited plans and books of reference bounded by a line commencing at the north-west corner of property belonging to Messrs. John Smith & Co. paper stock merchants Thornybauk and extending in an easterly direction along the northern boundary of said property and in continuation across Thornybauk to the north-

west corner of property owned and occupied by Mr. James Player as a riding school and adjuncts thence in an easterly direction along the northern boundary of said last-mentioned property as far as the western boundary of property No. 1 Wellington Place thence in a northerly direction along the said western boundary of said property to the north-west corner of the same and in continuation in a straight line to the kerb line of the foot pavement thence in a north-easterly direction along the said kerb line to the line of the kerb at the corner of Wellington Place and Home Street thence in a southerly direction along the kerb line of the foot pavement to a point in line with the north corner of Thornybauk and Home Street and in continuation across Thornybauk or Lochrin Terrace to the kerb line on the southern side of the same thence in a westerly direction along said kerb line on the southern side of Lochrin Terrace to a point in line with the western boundary of premises belonging to the said Messrs. John Smith & Co. thence in a northerly direction towards said western boundary and along the same to the point first mentioned all lying within the city parish of Edinburgh and city and royal burgh :

A.D. 1900.

(6) For the purpose of improving the neighbourhood the lands houses and other property situated lying and being within the area marked G delineated and numbered on the deposited plans and books of reference bounded by a line commencing at the corner of West Crosscauseway and Nicolson Street and extending in a northerly direction along the western side of Nicolson Street to the southern boundary of Nicolson Street United Presbyterian Church thence in a westerly direction along the said last-mentioned boundary to the eastern boundary of Quarry Close thence along the said eastern boundary of Quarry Close to the north side of West Crosscauseway thence in an easterly direction along the said north side of West Crosscauseway to the point first mentioned all lying within the city parish of Edinburgh and city and royal burgh.

58. The Corporation may by public auction or private bargain sell dispoise feu lease or otherwise dispose of such portions as they may think proper of the lands and others which they may acquire as aforesaid and as may not be required for the respective purposes before specified on such terms and subject to such conditions as they may determine and for such prices feu duties ground annuals rents or other considerations as they can obtain for the same.

59. Subject to the provisions of this Act the Corporation may compulsorily or by agreement enter upon purchase take hold

Corporation
may sell &c.
lands.

Lands for
works &c.

A.D. 1900. appropriate and use the lands houses and property shown on the deposited plans and described in the deposited books of reference or such part or parts thereof as may be required for or in connexion with the works hereinbefore described by this Act authorised. Provided that the Corporation shall not under the powers of this Act acquire the properties numbered on the deposited plans 143 and 143 in the city parish of Edinburgh.

Omission or misstatement in plans or books of reference may be corrected.

60. If there be any omission misstatement or erroneous description of any lands which may be required or taken for the works and tramways hereinbefore described or any of them or for the other purposes of this Act or of the owners lessees or occupiers of any such lands shown on the deposited plans or specified in the deposited books of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to the sheriff for the correction thereof and if it appear to the sheriff that such omission misstatement or erroneous description arose from accident or mistake he shall certify the same accordingly and shall in such certificate state the particulars of the omission and in what respect any such matter is misstated or erroneously described and the decision of the sheriff in such matter shall be final.

Certificates to be deposited.

61. The certificate of the sheriff shall be deposited in the office at Edinburgh of the principal sheriff clerk of the county of Midlothian and a duplicate thereof shall be deposited at the office of the principal sheriff clerk of the county of the city of Edinburgh and such certificate and duplicate shall be kept by such sheriff clerks respectively along with the other documents to which they relate and thereupon the deposited plans and books of reference shall be deemed to be corrected in accordance with the certificate and the Corporation may enter on purchase take hold and use for the purposes of this Act any lands in accordance with such certificate as if such omission misstatement or erroneous description had not been made.

Limiting period for compulsory purchase of lands.

62. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the commencement of this Act.

Power to take servitudes &c. by agreement.

63. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act or any of them in over or affecting any such lands and the provisions of the said Acts with

respect to lands and ground annuals or feu duties so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively. A.D. 1900.

64. And whereas in the exercise of the powers of this Act it may happen that portions only of the lands houses buildings or manufactories shown on the deposited plans may be sufficient for the purposes of this Act or any of them and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in the lands houses buildings or manufactories described in the First Schedule to this Act annexed and whereof portions only are required for the purposes of this Act may (if such portions can in the opinion of the jury arbiters or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto) be required to sell and convey to the Corporation such portions only without the Corporation being obliged or compellable to purchase the whole or any greater portion of such properties the Corporation always paying for the portions taken by them and making compensation for any damage sustained by the owners of such properties and other persons interested therein by severance or otherwise Provided always that if in any case in the opinion of the jury arbiters or other authority as aforesaid any such portion cannot be severed from the remainder of such property without material detriment thereto the Corporation may at any time within one month after the date of the final decision of such jury arbiters or other authority withdraw their notice to treat for the portion required by them and thereupon they shall pay to the owners of and other persons interested in the property in respect of which or of any portion of which they have given notice to treat all loss and damage sustained and all costs charges and expenses (as the same shall be taxed as between solicitor and client) reasonably incurred by them in consequence of such notice Provided also that nothing in this section contained shall be held as determining whether the properties described in the said First Schedule are or are not subject to the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

Owners may be required to sell parts only of certain properties.

65.—(1) The Corporation shall not under the powers of this Act purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which after the passing of this Act have been or on the fifteenth day of December last were occupied either wholly or partially by persons

Restrictions on displacing persons of labouring class.

A.D. 1900. belonging to the labouring class as tenants or lodgers unless and until—

(A) They shall have obtained the approval of the Secretary for Scotland to a scheme for providing new dwellings for such number of persons as were residing in such houses on the fifteenth day of December last or for such number of persons as the Secretary for Scotland shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the other circumstances of the case; and

(B) They shall have given security to the satisfaction of the Secretary for Scotland for the carrying out of the scheme.

(2) The approval of the Secretary for Scotland to any scheme under this section may be given either absolutely or conditionally and after the Secretary for Scotland has approved of any such scheme he may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced:

Provided that the Secretary for Scotland may dispense with the last-mentioned requirement subject to such conditions (if any) as he may see fit.

(4) Any conditions subject to which the Secretary for Scotland may have approved of any scheme or of any modifications of any scheme under this section or subject to which he may have dispensed with the above-mentioned requirement shall be enforceable by an order of the court of session to be obtained by the Secretary for Scotland.

(5) If the Corporation acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty not exceeding five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the court of session and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the court may if it think fit reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Corporation may appropriate any lands and heritages for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purposes of any such purchase section 145 of the Public Health (Scotland) Act 1897 shall be incorporated with this Act and shall apply to the purchase of lands by the Corporation for the purposes of any scheme under this section in the same manner in all respects as if the scheme were one of the purposes of that Act.

(7) The Corporation may on any lands and heritages belonging to them or purchased or acquired under this section or under any Provisional Order issued in pursuance of this section erect such dwellings for persons of the labouring class as may be necessary for the purpose of any scheme under this section and may sell demise or let or otherwise dispose of such dwellings and any lands and heritages purchased or acquired as aforesaid and may apply for the purposes of this section to which capital is properly applicable or any of such purposes any moneys which they may be authorised to raise or apply under the powers of this Act.

Provided that all lands on which any buildings have been erected or provided by the Corporation in pursuance of any scheme under this section shall for a period of twenty-five years from the date of such scheme be appropriated for the purpose of dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment :

Provided also that the Secretary for Scotland may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as he may think fit.

(8) The Corporation shall pay to the Secretary for Scotland any expenses incurred by him in relation to any inquiries under this section including the expenses of any witnesses summoned by the person holding the inquiry and a sum to be fixed by the Secretary for Scotland not exceeding three guineas a day for the services of such person.

(9) Any houses purchased or acquired by the Corporation for or in connexion with any of the purposes of this Act whether purchased or acquired in exercise of the powers conferred by this Act or otherwise and whether before or after the passing of this Act which may have been occupied by persons of the labouring class within five years before the passing of this Act for which houses no substitutes have been or are directed to be provided by any scheme approved by the Secretary for Scotland under the powers of any previous Act relating to the Corporation shall for the purposes of this section be deemed to have been acquired under the powers of this Act and to have been occupied on the fifteenth day of December last by the

A.D. 1900. same number of persons belonging to the labouring class as were occupying the said houses at the date of their acquisition. Provided that if the Secretary for Scotland is unable to ascertain the number of such persons who were then occupying the said houses the said houses shall be deemed to have been occupied by such number of such persons as in the opinion of the Secretary for Scotland they might have been sufficient to accommodate.

(10) For the purposes of this section the expression "labouring class" includes mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them and "house" means any house or part of a house occupied as a separate dwelling.

Incorporation of sections of Act of 1893.

66. Sections 20 to 24 and 26 to 29 of the Edinburgh Improvement and Municipal and Police (Amendment) Act 1893 are hereby incorporated with and shall mutatis mutandis apply to the several works authorised to be executed by this Act and to the lands authorised to be acquired therefor and for the other purposes of this Act as if the said sections were severally set forth in this Act.

PART VI.—ASSESSMENTS BORROWING POWERS AND FINANCE.

Application of sections of Corporation Tramways Act 1893 as to assessing borrowing &c. for tramway purposes.

67. Sections 21 22 and 23 of the Corporation Tramways Act 1893 are hereby incorporated with and shall form part of this Act and shall subject to the provisions of the Act of 1893 the Corporation Tramways Act 1896 the Extension Act the Act of 1897 the Act of 1899 and this Act apply mutatis mutandis to the tramways authorised to be constructed by this Act and to any lands acquired or to be acquired under and for the tramway purposes of this Act in the same way and to the same effect and shall confer the same powers on the Corporation of assessing within the city and of borrowing and for repayment of money borrowed as if such sections as amended and extended by the said Acts were severally herein set out at length. Provided always that the execution of Works Nos. 2 and 4 authorised by this Act shall for the purposes of this section be deemed to be a tramway purpose.

Power to apply burgh assessment.

68. The Corporation are hereby authorised to impose assess and levy within the city and recover apply and use for the execution of the works authorised by this Act (other than tramways) and for carrying out the other powers objects and purposes of this Act or any of them and for the acquisition of lands and heritages and servitudes or other property which may be required in connexion

therewith (other than for tramway purposes) the burgh assessment^s under their control as authorised by the Act of 1879 as amended and extended by the several Edinburgh Municipal and Police Acts thereafter passed and so far as in force for the time within the city or so much of the said assessments as may be necessary for such purposes in the way and manner and by the same means as are provided in the Act of 1879 as so amended and extended.

A.D. 1900.

69. Subject to the provisions of this Act the Corporation are hereby authorised to borrow money for executing the works authorised by this Act (other than tramways) and carrying out the powers objects and purposes of this Act or any of them and for the acquisition of lands and heritages servitudes and other property which may be required in connexion therewith (other than for tramway purposes) on the security of the burgh assessments before-mentioned under their control to be levied and applied and used as in this Act provided and they shall provide a sinking fund for the repayment of the sums so borrowed and sections 81 to 92 of the Act of 1879 as to borrowing money are as amended and extended by the several Edinburgh Municipal and Police Acts thereafter passed and so far as in force for the time within the city incorporated herewith and the powers and provisions therein contained as so amended and extended shall be held to apply to the purposes of this Act and to the money borrowed under the authority of this Act as if such sections as so amended and extended were re-enacted in this Act.

Application of provision of Act of 1879 as to borrowing money.

PART VII.—MISCELLANEOUS.

70. Notwithstanding anything contained in the sett of the burgh or in the Edinburgh Municipal and Police Acts it shall not be necessary after the passing of this Act to have the Corporation accounts fitted and audited by merchants and craftsmen.

Audit of city accounts.

71. The Corporation may supply electricity in bulk to any local authority company or person outside the city having statutory authority to supply electricity either for power or lighting purposes and on such terms and conditions as may be agreed between the Corporation and such local authority company or person Provided always that any supply under this section within the jurisdiction of any local authority shall be subject to the consent of such local authority Provided that the provisions of section 39 ("For protection of the Postmaster-General") of the Corporation Tramways Act 1896 shall extend and apply to any works acts or things executed or done for the purpose of supplying electricity under this section.

Corporation may supply electricity outside city.

72. From and after the passing of this Act the Corporation may extend the period for the redemption of debt incurred or to be incurred in connexion with the public parks of the city to fifty years.

Redemption of debt for public parks.

A.D. 1900.

Buildings
for public
entertain-
ments &c.

73. The dean of guild court in addition to the powers conferred on that court by section 161 of the Act of 1879 and by section 80 of the Act of 1891 with respect to any building used or intended to be used as a place of public amusement or entertainment or public meetings may on an application by the procurator fiscal to that court by an order prevent and stop the use of any building for any of such purposes unless and until the dean of guild court is satisfied that the means of access to and exit from such building and protection from fire and from public danger are sufficient and that any order which may have been made or may be made by the dean of guild court has been carried out.

Notice
before com-
mencing
operations.

74. No person shall commence any operations which have been or may be sanctioned by the dean of guild court under the Edinburgh Municipal and Police Acts unless on previous written notice stating the date of the intended commencement given to the burgh engineer not more than three days before such commencement.

Transfer of
duties of
officials.

75. The Corporation may in their discretion at any time transfer from any one of their officers to any other of their officers such duties under the Edinburgh Municipal and Police Acts as shall in their opinion be more appropriate to the office of such other officer and require such other officer to perform the duties so transferred.

Applica-
tion of
Contagious
Diseases
(Animals)
Act &c.

76. In the application within the city of section 34 of the Contagious Diseases (Animals) Act 1878 and of the Dairies Cowsheds and Milkshops Order of 1885 made thereunder and of any other Order made or to be made under that section or relating to dairies cowsheds and milkshops and of the regulations made or to be made thereunder by the Corporation as the local authority of the city the following provisions shall unless there be something in the subject or context repugnant thereto have effect (namely):—

“Milk” includes ice-cream or any similar commodity manufactured or made either wholly or in part from or with milk or cream;

“Purveyor of milk” includes manufacturer of merchant or dealer in ice-cream or any similar commodity manufactured or made either wholly or in part from or with milk or cream;

“Milk store” “milkshop” or “milk vessel” includes premises shop stance stall cart or barrow can vessel utensil or other article owned occupied hired or used wholly or partially for the manufacture or sale of ice-cream or any similar commodity manufactured or made either wholly or in part from or with milk or cream.

Byelaws for
prevention
of betting
&c.

77. The Corporation in addition to the powers conferred upon them by the Edinburgh Municipal and Police Acts may from time

to time make and rescind such byelaws as they think fit for the following purposes (that is to say):— A.D. 1900.

To prevent or suppress betting bookmaking or wagering in or on any street park or open space within the city;

To prohibit or prevent any person or persons using any street park or open space within the city for betting bookmaking gaming or wagering or offering to engage in betting bookmaking gaming or wagering within any such street park or open space; and

To impose penalties for breach or contravention of any such byelaws not exceeding forty shillings for each offence.

78. The driver of any carriage or vehicle who does not obey the instruction direction or signal given by any constable who is stationed in or on any street for the purpose of regulating the traffic thereon or on the adjoining streets and for the maintenance of order there shall be liable to a penalty not exceeding forty shillings for each offence. Penalty on drivers not obeying constables regulating street traffic.

79. The Corporation in addition to the powers conferred upon them by the Edinburgh Municipal and Police Acts, may from time to time make and rescind such byelaws as they think fit for the following purposes (that is to say):— Street traffic byelaws.

(1) To prescribe the maximum speed at which carriages and other vehicles of any kind or description may be driven drawn or propelled along in or through any street or place within the city and to fix if the Corporation think fit varying speeds in different places but not exceeding such maximum and to prohibit any driver or other person in charge of any carriage or vehicle causing or allowing the same to proceed at a rate exceeding such maximum speed;

(2) To impose penalties for breach or contravention of any such byelaws not exceeding forty shillings for each offence:

Provided that this section shall not apply to light locomotives within the meaning of the Locomotives on Highways Act 1896 and provided further that any byelaws which may be made by the Corporation under this section shall be subject to confirmation by the Secretary for Scotland and any byelaws made by the Corporation under any other section of this Act shall be subject to confirmation by the sheriff.

80. The Acts of 1879 1891 1894 and 1896 are hereby amended as follows:— Amendment of Acts.

Section 186 of the Act of 1879 shall be read as if the words “ and
“ all junctions or connexions with the sewers or drains vested in
“ the magistrates and council and all openings into the same
“ may be made by the burgh engineer and the cost of the same (Junctions of sewers &c.)

A.D. 1900.

“ and incident thereto shall be recoverable by the Corporation
“ from the owner of the house or building obtaining such
“ connexion ” were added at the end thereof :

(Closing
hour.)

Section 247 subsection (8) of the Act of 1879 shall be read as
if the word “ twelve ” occurring in the said subsection were
omitted and the word “ eleven ” inserted in lieu thereof :

(Billiard
rooms and
sellers of ice
creams to be
licensed.)

Section 285 of the Act of 1879 is hereby repealed and in
lieu thereof the following provision shall have effect (that is
to say) :—

From and after the commencement of this Act every person
who shall keep or suffer to be kept or used or use any
house building room or place for public billiard playing or
shall keep a public billiard table or bagatelle board or other
table or instrument used in any game of the like kind at
which persons are admitted to play or shall sell ice-cream
(except in any premises duly licensed as an hotel) without
having obtained a licence from the magistrates who are
hereby empowered to grant the same for the house building
or premises where such billiard table bagatelle board or
other table or instrument as aforesaid is kept or used
or such ice-cream is kept for sale or sold and also every
person licensed under this Act who shall not during the
continuance of such licence put and keep up the words
“ Licensed for billiards ” or “ Licensed for the sale of ice-
cream ” as the case may be legibly printed in some con-
spicuous place on or near the door and on the outside of
the house or building specified in the licence shall be liable
to a penalty not exceeding ten pounds and in the event of
such house building room or place being continued to be
kept or used for such purpose after such conviction to
a continuing penalty of ten pounds for every day during
which the offence is committed or continued together with
the reasonable costs and charges of the conviction Provided
always that such licences shall run from the fifteenth day
of May in one year to the same date in the year succeeding
unless the same be sooner forfeited revoked or suspended
and the clerk to the magistrates shall keep a register of
such licences or renewals and for such licences or renewals
he shall be entitled to receive such reasonable fees as the
magistrates may fix :

(Regulating
hours for
play at
billiard
tables and
for sale of
ice creams.)

Section 286 of the Act of 1879 is hereby repealed and in lieu
thereof the following provision shall have effect (that is
to say) :—

Every person licensed to keep any public billiard table or
bagatelle board or table or instrument used in any game

of the like kind or to sell ice cream under the provisions of this Act who shall allow any person to play at such table board or instrument or shall sell ice-cream except during the hours between eight of the clock in the morning and eleven of the clock at night on any lawful day or at such extended hour at night as the magistrates may by special regulation in particular cases for reasons assigned permit and every person holding a hotel licence who shall allow any person to play at such table board or other instrument kept on the premises specified in such hotel at any time when such premises are not by law allowed to be open for the sale of wine spirits or beer or other fermented or distilled liquors except to bonâ fide residents in such hotel or sell ice-cream as the case may be shall be liable to the penalties in this Act provided in the case of persons keeping such public billiard table bagatelle board or other table or instrument as aforesaid for the public use without licence :

A.D. 1900.

Section 42 of the Act of 1891 shall be read as if the words "one and a quarter times" occurring in the said section were omitted and as if the words "that where there are front plots between such street and the building line of such house or building the width of such plots shall be added in calculating the width of the street for the purpose of regulating the height of the house or building under this section but in that case no erection of any kind shall be put upon such front plots on either side of the street ex adverso of such house or building in all time thereafter and provided also that" were inserted after the word "always" in the sixteenth line of the said section :

(Height of houses &c.)

Section 44 of the Act of 1891 shall be read as if the words "above the height of one and a quarter times" occurring in the said section were omitted and the word "beyond" inserted in lieu of the words so omitted unless in the case of a house or building in an existing street which may be made of the same height as the adjoining houses but not exceeding one and a quarter times the width of the said street :

(Height of houses &c.)

Section 49 of the Act of 1891 shall be read as if the words "waterclosets and water supply" were inserted after the word "ventilation" occurring therein :

(Water-closets and water supply.)

Section 50 of the Act of 1891 shall be read as if the word "four" occurring in the fifth line thereof were omitted and the word "three" inserted in lieu thereof and as if the words "to be attached so as to form part of and to be exclusively used in connexion with such shops or business premises" were

(Open space to houses.)

A.D. 1900. inserted after the word "saloons" second occurring therein
 Provided always that in the case of houses in tenements
 intended to be occupied or used as flats or separate dwellings
 having an open space or plot in front thereof such open space
 or plot shall not be reckoned or computed as part of the open
 space required to be provided as aforesaid and in the case of
 any tenement exceeding four storeys in height one fourth
 additional open space shall be provided as aforesaid for every
 storey exceeding four. Provided also that in the case of a
 house not exceeding four storeys in height to be erected in any
 street of not less than fifty-five feet in width formed at the
 passing of this Act or laid down on the feuing plan referred
 to in section 45 of the Act of 1891 or any feuing plan approved
 by the Corporation before the passing of this Act the foresaid
 open space may be of smaller extent than before specified but
 so that such open space shall be at least equal to three fourths
 of the area occupied by such house and in all cases save as
 aforesaid no houses or buildings shall at any time be erected
 on any part of any such open space :

(Limit to
 number of
 houses in
 common
 stairs.)

Section 52 of the Act of 1891 is hereby repealed and in lieu
 thereof the following provisions shall have effect (that is to
 say) :—

No new tenement of houses except with the authority of the
 Corporation which in special circumstances the Corporation
 may grant shall have more than twelve dwelling-houses
 entering from one common stair or passage where the
 common stair or passage is within the tenement but where
 there is an outside stair with balconies twenty-four houses
 may be permitted to enter from said common stair or
 passage and the width of such stairs passages balconies
 and stair landings shall in no case be less than four feet
 finished size :

(As to open
 spaces.)

Section 56 of the Act of 1896 shall be read as if the words
 "while and so long as the buildings or any of them shown on
 such plans shall be used as dwelling-houses" were omitted
 therefrom :

(As to re-
 constructed
 buildings
 causing
 extra risk of
 fire.)

Section 64 of the Act of 1896 shall be read as if the words "or
 to alter or reconstruct any existing house or building" were
 inserted after the word "building" first occurring therein and
 as if the words "or alteration or reconstruction" were inserted
 after the word "erection" occurring therein :

(Amend-
 ment of
 North
 Bridge
 Act.)

Section 22 of the North Bridge Act 1894 is hereby repealed but
 so far only as regards Milne Square and in lieu of the provisions
 so repealed the following provisions with respect to Milne
 Square shall have effect (that is to say) :—

The Corporation may stop up and discontinue as a public street or thoroughfare Milne Square and accesses thereto within the city and city parish of Edinburgh and the Corporation shall make compensation to owners and occupiers of and all other parties interested in any lands injuriously affected for all damage sustained by them by reason of the shutting up of the said square and accesses For that purpose section 6 of the Railways Clauses Consolidation (Scotland) Act 1845 is incorporated with this section of this Act The land or soil of the said square and accesses so stopped up and discontinued shall be and the same are hereby vested in the Corporation or their disponees freed and discharged from the public use thereof and from all other rights in or over the same.

A.D. 1900.

1900. 1. 1

81. Any person contravening any of the provisions of the Edinburgh Municipal and Police Acts shall be guilty of an offence and shall for each such offence except where otherwise in such Acts respectively specially provided be liable in a penalty not exceeding five pounds and in a further penalty not exceeding forty shillings for every day such offence is continued after conviction thereof which penalty and further penalty shall be without prejudice to the enforcement of compliance with the respective provisions of such Acts or of any order or requirement in any manner which would be competent by law if no such penalty was provided for.

Penalties.

82. Any penalties under the Edinburgh Municipal and Police Acts may be sued for and recovered at the instance of the prosecutor before the judge of police under the provisions of the said Acts or summarily under the Summary Jurisdiction (Scotland) Acts.

Recovery of penalties.

83. All costs charges and expenses attending the preparation obtaining and passing of this Act and incidental thereto shall be paid out of the common good or burgh assessments or any money to be borrowed under this Act.

Costs of Act.

A.D. 1900. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

LANDS BUILDINGS AND MANUFACTORIES OF WHICH PORTIONS ONLY MAY
BE TAKEN WITHOUT TAKING THE WHOLE.

Parishes.	Number on deposited Plans.
City parish of Edinburgh -	117 117 117 118 118 119 120 121 121 121 121 140 140 140 140 140 140 142A 142B.
Parish of Duddingston -	159 159 159 160 161 161 161 161 161 164.
Parish of Leith -	165 165 165 165 165 165 165 165 165 166 166 166 166 166 166 166 166 166 166 166 169 169.

THE SECOND SCHEDULE.

THE WARDS OF THE CITY.

No. I.—CALTON WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point at the junction of Princes Street Leith Street and Waterloo Place north-eastwards south-eastwards eastwards north-eastwards and eastwards along the centre of Waterloo Place Regent Road Norton Place and London Road to railway bridge at Abbeyhill Station thence northwards and north-eastwards along the centre of the Leith branches of the North British Railway to the municipal boundary thence north-westwards along said municipal boundary to a point in the centre of Leith Walk at Pilrig thence south-westwards along the centre of Leith Walk and Leith Street to the point first mentioned.

No. II.—CANONGATE WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point in the centre of Waterloo Place at Regent Arch thence north-eastwards south-eastwards eastwards north-eastwards and eastwards along

the centre of Waterloo Place Regent Road Norton Place and London Road to railway bridge at Abbeyhill Station thence northwards and north-eastwards along the centre of the Leith branches of the North British Railway to the municipal boundary thence south-eastwards north-eastwards south-eastwards eastwards south-eastwards south-westwards southwards eastwards southwards south-westwards south-eastwards and south-westwards along the said municipal boundary to the St. Leonard's branch of the North British Railway at Duddingston thence north-westwards westwards north-westwards and northwards along centre of said railway and the boundary of the Queen's Park to a point in the centre of Dumbiedykes Road at Arthur Street thence north-eastwards south-westwards and north-westwards along the centre of Dumbiedykes Road Waterston Avenue St. John's Hill Pleasance St. Mary Street Jeffrey Street Jeffrey Street footbridge and Calton Road to the point first mentioned.

NO. III.—NEWINGTON WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point at the junction of South Clerk Street Newington Road and East and West Preston Streets south-westwards north-westwards westwards southwards south-westwards south-eastwards eastwards south-eastwards and southwards along the centre of West Preston Street Causewayside Summerhall Melville Drive Argyle Place Chalmers Crescent Beaufort Road Kilgraston Road Grange Loan and Blackford Avenue to the municipal boundary at Blackford thence eastwards south-eastwards northwards north-eastwards south-eastwards north-eastwards south-eastwards and north-eastwards along said municipal boundary to the St. Leonard's branch of the North British Railway at Duddingston thence north-westwards westwards and north-westwards along the centre of said railway and the boundary of the Queen's Park to Park Road thence south-westwards north-westwards and south-westwards along the centre of Park Road Dalkeith Road and East Preston Street to the point first mentioned.

NO. IV.—MORNINGSIDE WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point at the junction of Leven Street and Glengyle Terrace eastwards south-eastwards northwards south-eastwards southwards south-westwards south-eastwards eastwards south-eastwards and southwards along the centre of Glengyle Terrace the southern boundary of the Meadows Melville Drive Argyle Place Chalmers Crescent Beaufort Road Kilgraston Road Grange Loan and Blackford Avenue to the municipal boundary at Blackford thence southwards westwards southwards westwards south-westwards westwards southwards westwards north-westwards south-westwards and north-westwards along said municipal boundary to a point at the southern boundary of Craighouse Estate thence eastwards north-westwards north-eastwards north-westwards north-eastwards south-eastwards northwards and north-eastwards along the south and east boundaries of Craighouse Estate the centre of Craighouse Road Balcarres Street Morningside Road Bruntsfield Place and Barclay Place to the point first mentioned.

A.D. 1900.

No. V.—MERCHISTON WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point in the centre of Leven Street at Gilmore Place southwards south-westwards southwards north-westwards south-westwards south-eastwards south-westwards south-eastwards and westwards along the centre of Leven Street Bruntsfield Place Morningside Road Balcarres Street Craighouse Road east and south boundaries of the Craighouse Estate to the municipal boundary thence westwards north-westwards westwards north-westwards westwards north-eastwards north-westwards south-westwards north-westwards northwards north-westwards north-eastwards north-westwards south-westwards north-westwards south-westwards and north-westwards along said municipal boundary to the Caledonian Railway at Slateford thence north-eastwards along centre of said railway to railway bridge at Harrison Road thence south-eastwards along the centre of Harrison Road to bridge at Union Canal thence north-eastwards along centre of Union Canal to a point at Lower Gilmore Place thence south-eastwards and north-eastwards along the centre of Lower Gilmore Place and Gilmore Place to the point first mentioned.

No. VI.—GORGIE WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point in the centre of railway bridge at Dalry Road south-westwards and eastwards along the centre of Dalry Road and Henderson Terrace to a point in the centre of Caledonian Railway thence south-westwards along the centre of said railway to municipal boundary at Slateford thence north-westwards north-eastwards north-westwards north-eastwards northwards north-westwards south-westwards and north-westwards along said municipal boundary to North British Railway thence north-eastwards along the centre of said railway to railway bridge at Caledonian Railway (Granton branch) thence south-eastwards along the centre of said railway to the point first mentioned.

No. VII.—HAYMARKET WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point at the junction of Princes Street Lothian Road and Rutland Street south-westwards along the centre of Rutland Street to a point opposite the west side of the carriage entrance to Caledonian Railway Station thence south-eastwards south-westwards south-eastwards and south-westwards along the west side of said carriage entrance the west boundary wall of station and the west main line of Caledonian Railway to railway bridge at Grove Street thence north-westwards westwards and south-westwards along the centre of Grove Street Morrison Street and Dalry Road to railway tunnels at Haymarket thence south-westwards along the centre of the North British Railway to municipal boundary thence north-westwards north-eastwards north-westwards north-eastwards north-westwards eastwards north-westwards north-eastwards north-westwards westwards north-westwards and eastwards along said municipal boundary to Queensferry Road at Blackhall thence south-eastwards eastwards south-eastwards north-eastwards and eastwards along the centre of Queensferry Road and Belford Road to Belford Bridge

thence northwards north-eastwards eastwards south-eastwards eastwards north-eastwards and south-eastwards along the stream of the Water of Leith to Dean Bridge thence south-eastwards and eastwards along centre of Dean Bridge Randolph Cliff Queensferry Street and Princes Street to the point first mentioned. A.D. 1900.

NO. VIII.—ST. BERNARD'S WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point in the centre of Canonmills Bridge at Canonmills south-westwards north-westwards westwards south-westwards southwards south-eastwards south-westwards north-westwards south-westwards westwards north-westwards south-westwards and southwards along the stream of the Water of Leith to Belford Bridge thence westwards south-westwards north-westwards westwards and north-westwards along the centre of Belford Bridge Belford Road and Queensferry Road to the municipal boundary at Blackhall thence north-eastwards north-westwards north-eastwards north-westwards north-eastwards north-westwards eastwards north-eastwards southwards and eastwards along the said municipal boundary to Inverleith Row at Goldenacre thence south-eastwards along the centre of Inverleith Row and Howard Place to the point first mentioned.

NO. IX.—BROUGHTON WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point at the junction of Leith Walk Leith Street and Broughton Street north-westwards along the centre of Broughton Street Bellevue Bellevue Place Rodney Street Canonmills Canonmills Bridge Howard Place and Inverleith Row to the municipal boundary at Goldenacre thence eastwards north-eastwards and south-eastwards along said municipal boundary to a point in centre of Leith Walk at Pilrig thence south-westwards along centre of Leith Walk to the point first mentioned.

NO. X.—ST. STEPHEN'S WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point in the centre of Broughton Street at Albany Street south-westwards north-westwards south-westwards and north-westwards along the centre of Albany Street Abercromby Place Heriot Row India Street North-west Circus Place and Kerr Street to Stockbridge Bridge thence north-eastwards north-westwards northwards north-eastwards eastwards south-eastwards and north-eastwards along the stream of the Water of Leith to Canonmills Bridge thence south-eastwards along the centre of Canonmills Rodney Street Bellevue Bellevue Place and Broughton Street to the point first mentioned

NO. XI.—ST. ANDREW'S WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point at the junction of Princes Street Leith Street and Waterloo Place south-westwards and north-westwards along the centre of Princes Street Queensferry Street and Randolph Cliff to Dean Bridge thence eastwards and north-eastwards along the stream of the Water of Leith to Stockbridge Bridge

A.D. 1900. — thence south-eastwards north-eastwards eastwards north-eastwards south-eastwards and south-westwards along the centre of Kerr Street North-west Circus Place India Street Heriot Row Abercromby Place Albany Street Broughton Street and Leith Street to the point first mentioned.

NO. XII.—ST. GILES' WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point at the junction of Princes Street Leith Street and Waterloo Place south-westwards along the centre of Princes Street and Rutland Street to a point opposite the west side of the carriage entrance to Caledonian Railway Station thence south-eastwards south-westwards south-eastwards and south-westwards along the west side of said carriage entrance the west boundary wall of station and the west main line of Caledonian Railway to Railway Bridge at Grove Street thence south-eastwards north-eastwards south-eastwards north-eastwards south-eastwards north-eastwards north-westwards north-eastwards north-westwards north-eastwards north-westwards and south-westwards along the centre of Grove Street Fountainbridge West Port Grass Market Candlemaker Row Bristo Place Bristo Street Marshall Street the west and south sections of Nicolson Square Hill Place Richmond Place West Adam Street East Adam Street Pleasance St. Mary Street Jeffrey Street Jeffrey Street footbridge Calton Road and Waterloo Place to the point first mentioned.

NO. XIII.—DALRY WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point in the centre of Fountainbridge at Drawbridge Union Canal southwards and south-westwards along the centre of the Union Canal to bridge at Harrison Road thence north-westwards along centre of Harrison Road to railway bridge thence north-eastwards along the centre of the Caledonian Railway to a point in said railway opposite Henderson Terrace thence north-westwards and north-eastwards along the centre of Henderson Terrace and Dalry Road to railway bridge thence north-westwards along the Caledonian Railway (Granton branch) to railway bridge at North British Railway thence north-eastwards along the centre of the North British Railway to railway tunnels at Dalry Road thence north-eastwards eastwards south-eastwards and north-eastwards along the centre of Dalry Road Morrison Street Grove Street and Fountainbridge to the point first mentioned.

NO. XIV.—GEORGE SQUARE WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point in the centre of Nicolson Street at Nicolson Square south-westwards north-westwards south-westwards north-westwards and south-westwards along the centre of the south and west sections of Nicolson Square Marshall Street Bristo Street Bristo Place Candlemaker Row Grass Market West Port and Fountainbridge to Drawbridge Union Canal thence southwards and south-westwards along the centre of Union Canal to a point at Lower Gilmore Place thence south-eastwards north-eastwards south-westwards eastwards south-eastwards northwards south-eastwards north-eastwards southwards

north-eastwards and north-westwards along the centre of Glengyle Terrace southern boundary of the Meadows Melville Drive Summerhall Causewayside West Preston Street South Clerk Street Clerk Street and Nicolson Street to the point first mentioned. A.D. 1900.

No. XV.—ST. LEONARD'S WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point at the centre of Nicolson Street at Hill Place north-eastwards north-westwards north-eastwards north-westwards eastwards north-eastwards and south-westwards along the centre of Hill Place Richmond Place West Adam Street East Adam Street Pleasance St. John's Hill Waterston Avenue and Dumbiedykes Road to Arthur Street thence south-eastwards southwards south-westwards and south-eastwards along the boundary of the Queen's Park to Park Road thence south-westwards north-westwards south-westwards and north-westwards along the centre of Park Road Dalkeith Road East Preston Street South Clerk Street Clerk Street and Nicolson Street to the point first mentioned.

No. XVI.—PORTOBELLO WARD.

That portion of the city and royal burgh comprehended within a line drawn from a point at the junction of Willowbrae Road and London Road in line with the south municipal boundary of Portobello Road thence north-eastwards south-westwards south-eastwards and north-westwards along the municipal boundary to the seaward boundary thence north-westwards along the said seaward boundary to the municipal boundary thence south-westwards along said municipal boundary to a point at Restalrig Road thence southwards across London Road to the point first mentioned.

THE THIRD SCHEDULE.

AGREEMENT between THE NATIONAL BANK of SCOTLAND LIMITED incorporated by Royal Charter and Acts of Parliament and having their registered office at number forty-two St. Andrew's Square Edinburgh of the first part and JOHN RITCHIE AND COMPANY proprietors and publishers of the "Scotsman" "Weekly Scotsman" and "Evening Dispatch" newspapers numbers twenty-four twenty-six twenty-eight and thirty Cockburn Street Edinburgh and JAMES LAW of number twenty-four Learmonth Terrace Edinburgh JOHN RITCHIE FINDLAY residing at number three Rothesay Terrace Edinburgh and GEORGE HARRISON LAW residing at number twenty-four Learmonth Terrace Edinburgh the individual partners of said firm as such partners and as individuals Mrs. SUSAN LESLIE FINDLAY of Aberlour Banffshire and number three Rothesay

A.D. 1900.

Terrace Edinburgh the said JOHN RITCHIE FINDLAY JAMES LESLIE FINDLAY architect Edinburgh the said JAMES LAW and WILLIAM DRUMMOND solicitor before the Supreme Courts Edinburgh trustees of the deceased John Ritchie Findlay of Aberlour and Craigellachie in the county of Banff and who resided at number three Rothesay Terrace Edinburgh under trust disposition and settlement and relative codicils granted by him and the LORD PROVOST MAGISTRATES AND COUNCIL OF THE CITY OF EDINBURGH of the second part.

WHEREAS the first parties are owners of certain properties on the west side of Milne Square Edinburgh and have raised two actions of suspension and interdict against the lord provost magistrates and council of the city of Edinburgh and against John Ritchie and Company respectively and also an action of declarator against the second parties hereto in connexion with the said properties as affected by the proposed shutting up of the said square and accesses which actions are now pending in the Court of Session And whereas the said lord provost magistrates and council are promoting a Bill in Parliament for the purpose inter alia of amending section twenty-two of the Edinburgh North Bridge Improvement Act eighteen hundred and ninety-four so far as affecting the said square and in order to settle the said actions and questions between them the parties hereby agree as follows:—

First The foresaid actions shall be forthwith taken out of court on joint minutes for the parties craving the court of consent to dismiss the said two actions of suspension and interdict and to recall the Lord Ordinary's interlocutor pronounced in said action of declarator and to dismiss the said action the lord provost magistrates and council being found liable to the first parties in the expenses of the said actions as the same may be taxed by the auditor of the Court of Session as between party and party :

Second The said John Ritchie and Company bind themselves and their successors not to erect unless with the consent of the first parties any buildings on the solum of the said square upon the space coloured green upon the plan signed as relative hereto higher than the sill of the lowest window of the said property belonging to the first parties and occupied as bank premises and lately as hotel premises the sills of the said windows being eleven feet or thereby above the old pavement of Milne Square but they may place roof lights with a sufficient slope on the roof to prevent water flowing in and further the said John Ritchie and Company undertake that the buildings which may be erected by them upon the solum of said square fronting the said space coloured green shall be faced with white enamelled brick and that provision shall be made for carrying off the water from the roof coming through the first parties' rhones which discharge upon the space and the said John Ritchie and Company further agree that the obligations in this article are and the same are hereby declared to be servitudes over their property in favour of the said first parties and their successors as owners of the property presently belonging to them and shall grant if required by the first parties a formal bond of servitude to that effect.

A.D. 1900.

Third The said lord provost magistrates and council shall pay to the first parties compensation for all injury and damage to the foresaid property of the first parties caused by the shutting up of the said square and accesses and by the erection of buildings upon the solum of said square which compensation failing agreement shall be determined by arbitration in the same manner as if the Lands Clauses Acts and section six of the Railways Clauses Consolidation (Scotland) Act eighteen hundred and forty-five were applicable and as if the first parties were owners of lands taken or parties interested in lands injuriously affected entitled to compensation under said Acts or otherwise for all loss and damage sustained by them by reason of the shutting up of said square and accesses and erection of buildings on the solum of the said square :

Fourth It is hereby agreed that the said lord provost magistrates and council will not take by the said Bill power to take or acquire the foresaid properties belonging to the first parties but shall withdraw any clause or clauses in the said Bill which might be held to give them such power :

Fifth This agreement shall be scheduled to the foresaid Bill and Act and so far as may be in the power of the promoters ratified thereby but whether so ratified or not and even if the said Bill or the clauses therein relating to the property before referred to shall not be passed into an Act this agreement shall notwithstanding continue of full force and effect :

Sixth The parties hereto consent to the registration hereof for preservation and execution and also for publication in the register of sasines In witness whereof these presents written on this and the two preceding pages of stamped paper by Francis Renwick Bell clerk to Mackenzie Innes and Logan writers to the Signet Edinburgh are along with the plan and elevation hereto annexed executed in triplicate by the parties hereto as follows vizt. They are subscribed by the said John Ritchie and Company George Harrison Law for himself and the said James Law and John Ritchie Findlay (the signature of the said John Ritchie and Company having been adhibited by the said George Harrison Law) and by the said William Drummond all at Edinburgh on the ninth day of March one thousand nine hundred before these witnesses William Alexander Cullen and William Robertson Hamilton Paton both clerks to Drummond and Reid solicitors Supreme Courts Edinburgh by the said Susan Leslie Findlay at the place and on the date last mentioned before these witnesses the said William Alexander Cullen and John Downes butler three Rothesay Terrace Edinburgh by the said James Leslie Findlay at the place and on the date last mentioned before these witnesses the said William Alexander Cullen and Alice Gillam tablemaid fourteen Coates Gardens Edinburgh by the Right Honourable Mitchell Thomson lord provost and Thomas Hunter writer to the Signet town clerk in name and by authority of the lord provost magistrates and remanent members of council present in council at Edinburgh the thirteenth day of the month and year last mentioned before these witnesses George Hannah and John Hogg Bell both clerks to the said Thomas Hunter and they are sealed with the common seal of the National Bank of Scotland Limited aforesaid and subscribed on behalf of the said bank by Patrick

A.D. 1900.

Blair writer to the Signet Edinburgh and Fletcher Norton Menzies of Menzies Edinburgh two of the ordinary directors and by George Binnie Hart the secretary of the said bank all at Edinburgh on the fifteenth day of the month and year last mentioned before these witnesses George Alexander Hunter and George Drever both of the law department of said bank in Edinburgh.

GEO. A. HUNTER Witness

GEO. DREVER Witness

W. A. CULLEN Witness

WILLIAM R. H. PATON Witness

W. A. CULLEN Witness

JOHN DOWNES Witness

W. A. CULLEN Witness

ALICE GILLAM Witness

GEO. HANNAH Witness

JOHN H. BELL Witness

Seal.

PATRICK BLAIR Director.

F. N. MENZIES Director.

GEO. B. HART Secretary.

J. RITCHIE AND Co.

GEO. HARRISON LAW for JAMES LAW.

GEO. HARRISON LAW.

JOHN R. FINDLAY.

S. FINDLAY.

J. L. FINDLAY.

WM. DRUMMOND.

MITCHELL THOMSON Lord Provost.

THOMAS HUNTER Town Clerk.

THE FOURTH SCHEDULE.

AGREEMENT between the LORD PROVOST MAGISTRATES AND TOWN COUNCIL OF THE CITY OF EDINBURGH (hereinafter referred to as "the Corporation") and the COUNTY COUNCIL OF THE COUNTY OF MIDLOTHIAN (hereinafter referred to as "the county council").

WHEREAS the Corporation are promoting a Bill in the present session of Parliament entitled "A Bill to amalgamate the burghs of Leith and Portobello with the city and royal burgh of Edinburgh and to extend the boundaries of the city and royal burgh and the county of the city of Edinburgh to amalgamate parishes to transfer to and vest in the amalgamated Corporation the respective undertakings of the Edinburgh and District Water Trustees and the Edinburgh and Leith Corporations Gas Commissioners to transfer to the Corporation all the powers and authorities of the corporation of Edinburgh and the corporation of Leith under the Water of Leith Purification and Sewerage Act to extend the limits of compulsory water supply to extend the limits of gas supply to enable the Corporation to purchase by agreement the gasworks and undertaking of the Portobello Gas Light Company to amend and extend the Edinburgh Municipal and Police and other Acts and for other purposes" And whereas by the said Bill it was proposed inter alia to extend the boundaries of the city and royal burgh and the county of the city of Edinburgh so as to include therein the landward portions of the city parish of Edinburgh and the parish of Leith parts of the parishes of Liberton and Colinton and the parish of Duddingston and to disjoin the said districts from the county of Midlothian And whereas

A.D. 1900.

the county council opposed the said Bill and after hearing evidence from the promoters the Select Committee of the House of Commons to whom said Bill was remitted found that the preamble of the said Bill had not been proved as regards the landward portions of the parishes of Leith and Duddingston. And whereas subsequently and before the said Committee had disposed of the Bill as regards the remainder of the lands proposed to be annexed to the city an agreement was arrived at between the Corporation and the county council in terms of which it was inter alia agreed that certain portions of the city parish of Edinburgh consisting of parts of the villages of Blackhall and Slateford and property adjoining thereto said portion of the parish of Colinton and said portion of the parish of Liberton with the exception of a triangular piece of land lying between the old and new Penicuik Roads should be excluded from the said Bill and that the landward portion of the city parish of Edinburgh with the exception foresaid said triangular piece of land forming part of the parish of Liberton and the main road from Edinburgh to Portobello should be annexed to the city of Edinburgh on certain terms and conditions which have been embodied in the said Bill and on the further conditions hereinafter expressed And whereas the said agreement so far as embodied in the said Bill has been approved of by the said Committee And now seeing it is necessary that the parties hereto should enter into this agreement for the purpose of expressing the further conditions which have been agreed upon Therefore it is hereby agreed as follows viz. :—

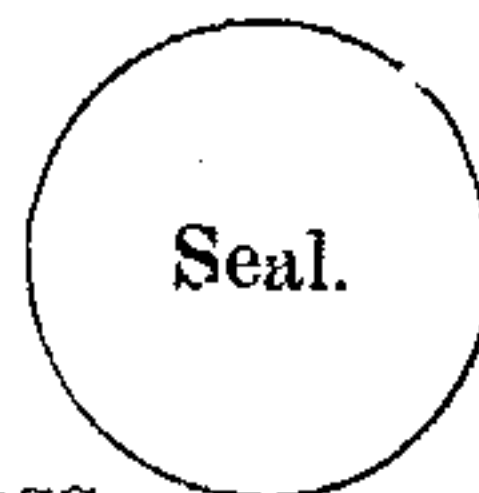
First The county council agree that if the Corporation shall at any time hereafter promote a Bill in Parliament applying for an extension of the boundaries of the city and royal burgh of Edinburgh and the county of the city of Edinburgh to the effect of including therein the landward portions of the parishes of Leith and Duddingston or any part thereof and disjoining the same from the county of Midlothian they (the county council) will not oppose such Bill subject to arrangement as to compensation to be paid by the Corporation to the county council as well as the value of any property belonging to the county in said portions as such compensation and value may be agreed upon between the Corporation and the county council or their successors or failing agreement as may be fixed by arbiters mutually chosen or by an oversman to be named by the arbiters in the event of difference of opinion :

Second It is hereby agreed that the annexation of the said road from Edinburgh to Portobello is not to be founded on by the Corporation or their successors to any extent or effect as a ground or argument for annexing any portion of said landward portions of the parishes of Leith and Duddingston to the city of Edinburgh against any opposition thereto by any proprietor or occupier of property in the district which may be so proposed to be annexed IN WITNESS WHEREOF these presents written on this and the two preceding pages are subscribed by the parties hereto as follows viz. By the Right Honourable Andrew McDonald lord provost and Thomas Hunter writer to the Signet town clerk of Edinburgh in name and by authority of the Corporation at Edinburgh on the fourteenth day of July eighteen hundred and ninety-six before these witnesses John Shields Simpson and Donald Cameron both clerks to the said Thomas Hunter and by Sir James H. Gibson Craig Baronet convener of the

A.D. 1900.

county council Robert Dundas vice-convener of the county council and James Heriot Balfour Melville county clerk of said county of Midlothian on behalf of the county council at Edinburgh on the twenty-ninth day of the month and year last above mentioned before these witnesses John Stewart clerk to the said James Heriot Balfour Melville and Lockhart Dobie Corson solicitor Supreme Courts of Scotland Edinburgh and they are also sealed with the common seal of the said county council.

JNO. S. SIMPSON Witness
DON. CAMERON Witness
JOHN STEWART Witness
LOCKHART D. CORSON Witness



A. McDONALD Lord Provost.
THOMAS HUNTER Town Clerk.
JAMES H GIBSON CRAIG Convener Midlothian County Council.
ROBERT DUNDAS Vice-Convener County Council Midlothian.
J. H. BALFOUR MELVILLE County Clerk of Midlothian.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the Queen's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C.; or
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